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RE: EAPA CONSOLIDATED CASE 7913 – Notice of Determination as to Evasion

To the Counsel and Representatives of the above-referenced entities:

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) Investigation 7913 (consolidated), U.S. Customs and Border Protection (CBP) has been investigating evasion of the antidumping (AD) and countervailing (CVD) orders on mattresses (mattresses, or covered merchandise) from the People's Republic of China (China), A-570-092 and C-570-128,¹ and/or the AD order on mattresses from Vietnam, A-552-827,² and/or the AD order on mattresses from Indonesia, A-560-836.³

CBP has determined there is substantial evidence that the importers under investigation entered merchandise covered by the *China Orders*, into the customs territory of the United States through evasion. CBP has determined there is not substantial evidence that the importers under investigation entered merchandise covered by the other aforementioned orders.

Specifically, for EAPA consolidated 7913, CBP finds that substantial evidence indicates that Alexand Inc. (Alexand), Alloeck Inc. (Alloeck), Anlowo Inc. (Anlowo), Bentensh Inc. (Bentensh), Calimoon Inc. (Calimoon), Day Day Up Inc. (Day Day Up), Deluxe Home of USA Inc. (Deluxe Home), Gemmeo Inc. (Gemmeo), Haiide Inc. (Haiide), Hondex Inc. (Hondex), Incoroy Inc. (Incoroy), Inland Empire Decor Home Furnishing Inc. (Inland Empire), Lincody Inc. (Lincody), Lirachy Inc. (Lirachy), Newland Technology Inc. (Newland), Outlier Inc.

¹ See *Mattresses from the People's Republic of China: Antidumping Duty Order*, 84 Fed. Reg. 68395 (U.S. Department of Commerce, December 16, 2019), provided in the Allegation at Schedule 1; and *Mattresses from the People's Republic of China: Countervailing Duty Order*, 86 Fed. Reg. 26463 (Department of Commerce, May 14, 2021), provided in the Allegation at Schedule 2. We refer to both orders, collectively, as “the *China Orders*.”

² See *Mattresses from Cambodia, Indonesia, Malaysia, Serbia, Thailand, the Republic of Turkey, and the Socialist Republic of Vietnam: Antidumping Duty Orders and Amended Final Affirmative Antidumping Determination for Cambodia*, 86 Fed. Reg. 26460 (Department of Commerce, May 14, 2021) (*Vietnam Order*).

³ The order on mattresses from Indonesia (*Indonesia Order*) was published in the same *Federal Register* notice as the *Vietnam Order*. We refer collectively to the *China Orders*, *Vietnam Order*, and *Indonesia Order* as “the *Orders*.” Note that the U.S. Department of Commerce recently revoked the *Indonesia Order*. See *Mattresses from Indonesia: Notice of Court Decision Not in Harmony With the Final Determination of Antidumping Duty Investigation; Notice of Amended Final Determination; and Notice of Revocation of Antidumping Order*, 90 Fed. Reg. 11256 (Department of Commerce, March 5, 2024), and *Mattresses from Indonesia: Notice of Court Decision Not in Harmony With the Final Determination of Antidumping Duty Investigation; Notice of Amended Final Determination; Notice of Revocation of Antidumping Order; Correction*, 90 Fed. Reg. 13138 (Department of Commerce, March 20, 2025).

(Outlier), Splendid Life Distribute Inc. (Splendid Life), Startown Inc. (Startown), Sunshine International Inc. (Sunshine Intl), Vovoyace Inc. (Vovoyace), Weekaly Inc. (Weekaly), Wuleitex Inc. (Wuleitex), and Zozonid Inc. (Zozonid) (collectively, the Importers), imported Chinese-origin mattresses into the United States after transshipping them through various countries and claiming those countries as the country of origin. As a result, either no cash deposits were applied to the Importers' entries of covered merchandise, or the incorrect cash deposits were applied in instances in which there were AD and/or CVD orders in effect for the claimed countries of origin.

Background

Allegations

This investigation, EAPA Consolidated (Cons.) 7913, stemmed from a pattern of evasion involving mattresses from the Chinese mattress conglomerate Foshan Aiyi, also doing business as (d/b/a) Molblly (Foshan Aiyi or Molblly), which CBP had previously investigated in EAPA Cons. Case 7856.⁴ Before the initiation of EAPA Cons. 7913, in EAPA Cons. 7856, CBP determined that there was reasonable suspicion of evasion of the *China Orders* by 12 importers who all allegedly transshipped Chinese mattresses through the Republic of Korea (Korea) and imposed interim measures.⁵ CBP made an affirmative determination as to evasion of the *China Orders* with respect to all 12 importers in that investigation on September 19, 2024.⁶

In spite of the interim measures in that investigation,⁷ one of the alleged in this investigation, CVB Inc. (CVB), observed that two importers found to be evading the *China Orders* in EAPA Cons. 7856, Anlowo Inc. (Anlowo) and Weekaly Inc. (Weekaly), imported mattresses from alleged countries of transshipment other than Korea, and between April 30, 2024, and May 22, 2024, CVB filed EAPA allegations against Anlowo, Weekaly, and 18 other importers.⁸ On June 28, 2024, CVB filed supplements which added information to each of its allegations.⁹ Additionally, Zinus USA Inc. (Zinus), the alleged in EAPA Cons. 7856, filed allegations against 11 importers (Inland Empire, Incoroy, Bentensh, and eight of the same importers named in the CVB Allegations).¹⁰ As summarized in detail in the NOI, many of these allegations involved

⁴ See CBP's Letter, "RE: EAPA Consolidated Investigation 7856: Notice of Determinations as to Evasion," dated September 19, 2024 (EAPA 7856 Determination Notice), available at: <https://www.cbp.gov/document/publications/eapa-consolidated-case-7856-various-importers-notice-determination-evasion>

⁵ See CBP's Letter, "Re: Amended Notice of Initiation of Investigation and Interim Measures - EAPA Cons. Case 7856," dated February 16, 2024 (EAPA 7856 NOI), available at: <https://www.cbp.gov/document/publications/eapa-cons-case-7856-various-importers-amended-notice-initiation-investigation>.

⁶ See EAPA 7856 Determination Notice.

⁷ See EAPA 7856 NOI.

⁸ See, e.g., "RE: EAPA CONSOLIDATED CASE 7913 - Notice of Initiation of Investigation and Interim Measures," dated October 30, 2024 (NOI) at 3-5 (narrative) and 6-7 (chart). When discussing the allegations and allegation supplements filed by CVB, we collectively refer to these allegations as "the CVB Allegations."

⁹ See, e.g., NOI at 5.

¹⁰ See, e.g., NOI at 5 (narrative) and 6 (chart). When discussing the allegations filed by Zinus, we collectively refer to these allegations as "the Zinus Allegations." Also, we collectively refer to the CVB Allegations, including the Allegation Supplements filed by CVB, and the Zinus Allegations, as "the Allegations" and we refer to the importers

claims of transshipment through multiple countries, including Vietnam, Taiwan, Korea, and/or Indonesia.¹¹

CVB and Zinus allege that a Chinese manufacturer with Vietnamese and Indonesian affiliates, Foshan Aiyi, exports its Chinese mattresses to Korea, and/or Taiwan, and/or Vietnam, and/or Indonesia (collectively, the Third Countries) for re-export to the United States to evade the *China Orders*. CVB also asserts that Molblly exports some Indonesian and/or Vietnamese mattresses to Korea and/or Taiwan for re-export to the United States to evade the *Vietnam Order* and *Indonesia Order*.¹² Zinus also alleges that Foshan Aiyi transships Chinese-origin mattresses through Korea without adequate labels to avoid the mattresses being traced back to Foshan Aiyi when the mattresses are shipped to the Importers to avoid AD/CVD duties.¹³ According to the Allegations, each of the Importers entered mattresses covered by at least one of the *Orders* into the United States while falsely declaring the mattresses as Third Country-origin.

Both Allegers provided quotations from a Chinese news article profiling Molblly's rise, including an interview with its Chief Executive Officer (CEO). In this article, the CEO is quoted as saying that Foshan Aiyi ships mattresses without proper labels to reduce traceability and facilitate evasion.¹⁴ The Allegers also contend that the Importers are registered at addresses that are not actual business locations and import from suppliers in the Third Countries with no actual mattress production capacity at the time of shipment.¹⁵ To support their contention that this behavior has actually occurred and led to evasion of the *Orders*, both Zinus and CVB provide (1) copies of the Chinese news article describing Foshan Aiyi's evasion scheme, including quotes from its CEO admitting to elements of the scheme;¹⁶ (2) photographs of sample mattresses confirming that Molblly attaches improper mattress labels, or no mattress labels, to impede traceability of its mattresses, as described in the article;¹⁷ (3) information about the Importers' business registration details and their suppliers indicating that the Importers may not be legitimate businesses, have several shared addresses and suppliers, and have affiliations with, or received mattresses from, Molblly and companies named after Molblly trademarks;¹⁸ and (4) information about specific suppliers indicating that they have insufficient mattress production capacity to supply the volumes of mattresses shipped to the United States by the Importers.¹⁹

1. Chinese News Article Describing Evasion Scheme and Admissions by Molblly's CEO

identified in the CVB Allegations, and the importers named in the Zinus Allegations, collectively, as "the Importers." In addition, we collectively refer to Zinus and CVB as "the Allegers."

¹¹ See NOI at 3-7.

¹² See the CVB Allegations at 6-7 and Exhibit 6.

¹³ See the Zinus Allegations at 3, 6, 20-23.

¹⁴ See the CVB Allegations at Exhibit 6 and the Zinus Allegations at Exhibit 18.

¹⁵ See the Zinus Allegations at 5-6 and CVB Allegations at 5 and Exhibit 4.

¹⁶ See the Zinus Allegations at Exhibit 18 and the CVB Allegations at Exhibit 6.

¹⁷ See the CVB Allegations at Exhibit 6 and the Zinus Allegations at 28-29, 31, Exhibit 20a, Exhibit 20b and Exhibit 22.

¹⁸ See the CVB Allegations at Exhibit 4, CVB China Allegations at Schedule 4, Allegation Supplement at Exhibit B, the Zinus Allegations at Exhibit 1a.

¹⁹ See the Zinus Allegations at 22-23, and Newland Version of Allegation Supplement.

The Allegations provide copies of a news article profiling Foshan Aiyi's success at gaining U.S. market share and attributing its success to Molbly's strategy for evading AD/CVD duties. According to the article:

The year after the first container was shipped in October 2018, Molbly encountered its first major crisis in going overseas - anti-dumping. On October 18, 2019, the U.S. Department of Commerce announced a positive final ruling on anti-dumping duties on Chinese mattresses, determining that the dumping margin of Chinese exporters' mattresses in the United States ranged from 57.03% to 1731.75%.²⁰

The article states that Foshan Aiyi responded to the threat that duties posed to its business by evading the *Chinese Orders*. Specifically, the article states that Ge Xuguang, Foshan Aiyi's CEO, "decided to ship goods even if there was a risk of anti-dumping."²¹

According to the Allegations, the statements in the Chinese news article indicated that shipping Chinese mattresses to Third Countries without proper labels was a core element of Foshan Aiyi's evasion strategy. The article quoted Ge Xuguang, stating that he "decided to gamble, even if there is no label, it will be shipped to the overseas warehouse first and then labeled."²²

According to the Allegations, statements in the article indicated that when Foshan Aiyi decided to evade duties through transshipment, it determined that this would be profitable because the potential profits from evasion exceeded the potential cost of having to re-export some mattress shipments if some of its transshipped mattresses were discovered. In addition to describing the shipment of unlabeled Chinese mattresses to Third Countries as a decision "to gamble,"²³ the article also quoted Ge Xuguang saying "{a}fter comparing the anti-dumping provisions in detail, we calculated the risks and costs we can bear. If something goes wrong, how much loss will it cost to bring the container back."²⁴ Thus, according to the Allegations, Foshan Aiyi's CEO publicly admitted to a scheme to ship unlabeled, and therefore, untraceable mattresses from China to the Third Countries for transshipment so that U.S. importers could subsequently enter the mattresses while falsely declaring them as Third Country-origin.

2. Evidence that Molbly Attaches Improper Mattress Labels Which Impede Traceability

CVB and Zinus both provided evidence in the Allegations to support their contentions that Foshan Aiyi's mattresses are improperly labeled in ways which facilitate transshipment through the Third Countries, as described in the Chinese news article. Specifically, CVB provided photographs of labels attached to mattresses it purchased with known Foshan Aiyi brand names such as Ssecretland Inc. (Ssecretland)²⁵ and Molbly. The labels in these photographs identify the mattresses as Korean-origin but do not identify the factories where production occurred, as

²⁰ See the Zinus Allegations at Exhibit 18 and the CVB Allegations at Exhibit 6.

²¹ See the Zinus Allegations at Exhibit 18 and the CVB Allegations at Exhibit 6.

²² See the CVB Allegations at 6. See also the Zinus Allegations at 15 and Exhibit 18.

²³ See the CVB Allegations at 6. See also the Zinus Allegations at 15 and Exhibit 18.

²⁴ See the CVB Allegations at 6, Exhibit 6. See also the Zinus Allegations at 15 and Exhibit 18.

²⁵ See Allegation Supplement at Exhibit B. For a list of Foshan Aiyi trademarks, see the Zinus Allegations at Exhibit 1a.

required by U.S. regulations.²⁶ Zinus also states that the mattress labels attached to its samples do not identify the date of manufacture, the name or address of the factory, and in most cases, do not even identify the country of origin, even though it is required for mattress labels to identify the country of origin, factory location, producer name, factory address, and date of manufacture.²⁷ The lack of accurate labeling impedes traceability of the mattresses and appears to confirm the pattern of behavior described in the Chinese news article, pointing to an evasion scheme.

The Zinus Allegations also provided photographs of mattress labels attached to sample mattresses with brand names owned by Foshan Aiyi. These images show that although many of these mattress labels do not identify the U.S. importers for whom they were made, those that do were made for importers named in the Zinus Allegations. This ties the pattern of improper labeling of mattresses to the Importers' mattress imports.²⁸

Although Zinus did not identify Taiwan as a country of transshipment, Zinus provided a Taiwanese Customs ruling against an importer that was fined for importing unlabeled Chinese mattresses from Foshan Aiyi into Taiwan for re-export to the United States.²⁹ This information further substantiates the Allegers' contention that Foshan Aiyi exports mattresses to the Third Countries without country-of-origin labels and provides specific evidence of this pattern of behavior to facilitate transshipment.

3. Details of the Importers' Business Registrations and Shared Suppliers

According to the CVB Allegations, the Importers' business registrations indicated that they were using false addresses and that several Importers appeared to be related to each other and to Foshan Aiyi. Specifically, three of the Importers, Haiide, Alloeche, and Wuleitex, appear to have filed business registrations on the same day and with the same business address, 3654 Main Street, Floor 3 in Flushing, New York.³⁰ Further, these three Importers also share this address, including the floor number, with POTCTZ Inc. (POTCTZ), Ssecretland Inc. (Ssecretland),³¹ and Kelanch Inc. (Kelanch), an importer CBP found to be evading the *China Orders* by transshipment through Korea in EAPA Cons. 7856.³² Zinus showed that POTCTZ and Ssecretland are also trademarks registered to Foshan Aiyi affiliates.³³ Because Importers Haiide and Wuleitex operate out of the same address as POTCTZ, Ssecretland, Alloeche, and Kelanch, they may also be Foshan Aiyi affiliates.³⁴

²⁶ See CVB Allegations at Exhibit 8. The Zinus Allegations provide the current mattress labeling requirements at Exhibit 23.

²⁷ See the Zinus Allegations at 28-29, 31, Exhibit 20a, Exhibit 20b and Exhibit 22.

²⁸ *Id.* at Exhibit 20a, Exhibit 20b and Exhibit 22. As noted above, for a list of known Foshan Aiyi-owned trademarks, see the Zinus Allegations at Exhibit 1a.

²⁹ See the Zinus Allegations at Exhibit 19.

³⁰ See the CVB Allegations at Exhibit 4.

³¹ See the CVB Allegations at Exhibit 4. See also the CVB China Allegations, Allegation 8046, and Allegation 8047 at Schedule 3.

³² See EAPA 7856 NOI, provided in the Allegation Supplement at Exhibit B. See also EAPA 7856 Determination Notice.

³³ See the Zinus Allegations at Exhibit 1a.

³⁴ *Id.* at Exhibit 1a.

Calimoon's business registration also lists the same address as Zevoky Inc. (Zevoky), a Foshan-Aiyi brand name³⁵ and an importer which CBP found to be evading the *China Orders* by transshipment through Korea in EAPA Cons. 7856.³⁶ CVB also stated that the address of Calimoon appears to be a Mexican restaurant,³⁷ and CVB pointed out that the business registrations of several of the Importers identified in its Allegations, including Splendid Life, Haiide, Calimoon, Startown, Weekly, are delinquent, noncompliant, or terminated.³⁸

CVB provided information that Splendid Life is registered at 3263 Oakcreek Rd., Chino Hills, CA.³⁹ This is the same address as Wakodo Household Supply Company, Inc. (Wakodo), which is one of the importers CBP found to be evading the *China Orders* by transshipment through Korea in EAPA Cons. 7856.⁴⁰ As stated above, at the time of the initiation of EAPA Cons. 7913, CBP had not reached a determination in EAPA Cons. 7856, but had published a Notice of Initiation of Investigation and Interim Measures, which CVB provided in its Allegation Supplement.⁴¹ At the time of the Notice of Initiation of Investigation and Interim Measures in EAPA Cons. 7913, CBP had also determined that Wakodo evaded the *China Orders* by transshipment through Korea.⁴²

The CVB Allegations contain bills of lading (BOL) from ImportInfo, a data vendor, showing that Day Day Up, Deluxe Home, Lirachy, and Zozonid have all received mattress shipments from the same Korean supplier, [company name] (Supplier D). Zozonid and Newland both appear on the same BOL, with Zozonid as [party type] and Newland as [party type]. Startown and Outlier both received mattresses from the same Taiwanese supplier, [company name] (Supplier 3), while Gemmeo, Hondex and Vovyace all received mattresses from Korean supplier [company name] (Supplier F). The BOLs also show that Lincody received a shipment of mattresses from Molbly's Indonesian affiliate.⁴³ According to these BOLs, Alexand received a shipment of mattresses from the same supplier as POTCTZ, a company located at the same Flushing, NY, address as Haiide, Alloech, and Wuleitex.⁴⁴

³⁵ *Id.*

³⁶ See CVB Allegations at Exhibit 4 and EAPA 7856 Determination Notice at 1. At the time of the initiation of EAPA Cons. 7913, CBP had not yet reached a determination in EAPA Cons. 7856, but had already published a Notice of Initiation of Investigation and Interim Measures, which CVB provided in its Allegation Supplement at Exhibit B.

³⁷ *Id.* at 5.

³⁸ *Id.* at 5 and Exhibit 4. See also the CVB China Allegations at Schedule 4, the CVB Vietnam Allegations at Schedule 3, and the CVB Indonesia Allegations at Schedule 3.

³⁹ See CVB Allegations at Exhibit 4 and CVB China Allegations at Schedule 4.

⁴⁰ See CVB Allegation Supplement at Exhibits A and B. See EAPA 7856 Determination Notice. This determination supports reasonable suspicion of evasion against several of the Importers in EAPA Cons. 7913, as described below.

⁴¹ See CVB Allegation Supplement at Exhibit B. The reasonable suspicion of evasion against Wakodo and Zevoky in EAPA Cons. 7856, combined with the fact that they share addresses with Calimoon and Splendid Life, respectively, supported the evidence in the Allegations that reasonably suggests evasion. Since the initiation of EAPA Cons. 7913, CBP also made an affirmative determination as to evasion in EAPA Cons. 7856, which also supports reasonable suspicion of evasion against these importers as described below.

⁴² See EAPA 7856 Determination Notice.

⁴³ See CVB Allegations at Schedule 3. For information the affiliation between Foshan Aiyi and PT Foshan Aiyi Indonesia International, see the CVB China-Indonesia Allegations and the CVB Vietnam-Indonesia Allegations at 1, 5, and Exhibit 7.

⁴⁴ See the CVB China Allegations at Schedule 3, A-552 and the CVB Indonesia Allegations at Schedule 2.

CVB also provided aggregated BOL shipment data from ImportInfo showing that several of the Importers named in its Allegations received mattresses from suppliers affiliated with Foshan Aiyi/Molbly. Specifically, Haiide, Splendid Life, Calimoon, and Anlowo all received mattresses from [company name](Supplier L).⁴⁵ According to information from Molbly's website provided in the Allegation, this company is Molbly's [descriptor] affiliate.⁴⁶ The ImportInfo data in CVB's Allegations also show that Alloech, Wuleitex, and Startown received mattresses from [company name], a Molbly mattress brand name.⁴⁷ The ImportInfo data also indicated that Haiide, Calimoon, and Alloech have received past shipments [sales channel and company name].⁴⁸

In addition to the fact that BOLs show that the Importers named in the CVB Allegations have overlapping suppliers, including several with ties to Foshan Aiyi, CVB also provided information indicating that most are registered or operate out of the Denver, Colorado area. Specifically, Haiide, Alloech, Wuleitex, Lincody, Weekaly Sunshine Intl, Gemmeo, Day Day Up, Anlowo, Hondex, and Startown all have business registration addresses or addresses on their BOLs located in the Denver metro area. Therefore, the CVB Allegations assert that these Importers are likely involved in the same scheme.⁴⁹

Zinus also provided Google Maps screenshots of the addresses where the Importers named in the Zinus Allegations are registered, showing that all these addresses, except for the address of Deluxe Home, appear to be unrelated businesses or single-family homes. Specifically, Inland Empire's address is a Thai restaurant,⁵⁰ while Gemmeo's address appears to be an auto body repair shop.⁵¹ Zinus shows that Alexand's, Lirachy's, and Hondex's addresses are office buildings with no signs or other indication that Alexand, Lirachy, or Hondex are located there.⁵² According to the Google Maps images in the Zinus Allegations, Incoroy's address appears to be a restaurant,⁵³ additional addresses associated with Lirachy are an engineering consulting firm and a law firm, neither of which have Lirachy's name on the buildings.⁵⁴ Addresses associated with Bentensh⁵⁵ and Zozonid⁵⁶ appear to be single-family houses. Zinus also points out that Vovoyace and Zozonid were both incorporated in New Jersey on July 4, 2023, and both have addresses in Denver, Colorado, and New Jersey. In its Allegations, Zinus notes that the addresses for Incoroy and Vovoyace are nearly identical, and both are in the same plaza, with the names of small shops and restaurants on the front of the building, but the names of neither Vovoyace nor Incoroy appear on the building.⁵⁷

⁴⁵ See the CVB Allegations at Exhibit 5.

⁴⁶ See the CVB Allegations at 1 and Exhibit 7. See also the Zinus Allegations at Exhibit 36b.

⁴⁷ See the CVB Allegations at Exhibit 5 and the Zinus allegations at Exhibit 1a.

⁴⁸ See the CVB Allegations at Exhibit 5.

⁴⁹ See the CVB Allegations at Exhibit 4, CVB Vietnam Allegations at Schedule 3, and CVB China Allegations at Schedule 4.

⁵⁰ See the Zinus Allegations at 8 and Exhibit 7b.

⁵¹ See the Zinus Allegations at 9 and Exhibit 9b.

⁵² See the Zinus Allegations at 9-10 and Exhibit 8b for Alexand, Exhibit 12b for Lirachy, and 10b for Hondex.

⁵³ *Id.* at 9 and Exhibit 11b.

⁵⁴ *Id.* at 9-10 and Exhibit 12b.

⁵⁵ *Id.* at 11 and Exhibit 34C.

⁵⁶ *Id.* at 10 and 13d.

⁵⁷ *Id.* at 10-11, Exhibit 13a and Exhibit 14d.

Zinus also pointed out that all the Importers named in its Allegations, except for Splendid Life, appear to have been registered at approximately the same time, which was also when new mattress brand names registered as trademarks of Chinese entities first appeared for sale on Amazon.⁵⁸ The Zinus Allegations showed that the sellers on Amazon selling the new brands also appear to be Chinese entities,⁵⁹ and that labels on mattresses sold under these brand names identify several of the Importers named in Zinus' Allegations as purchasers of mattresses with these brands.⁶⁰ Although this connects mattresses imported by the Importers in the Zinus Allegations to China, Zinus also provided BOL data showing that each of the Importers named in its Allegations are importing its mattresses from South Korean shippers. This suggests that the Importers may be falsely declaring their mattress imports as Korean-origin to evade the *China Orders*.⁶¹

Further, Zinus showed that several of the Importers named in its Allegations have received shipments of mattresses from the same Korean suppliers that also supplied mattresses to importers in EAPA Cons. 7856, a previous EAPA investigation into evasion of the *China Orders*. Specifically, Zinus identified [company name] (Supplier S), Supplier D, [company name] (Supplier H), Supplier F, and [company name] (Supplier Z) as suppliers of mattresses to Alexand, Beanomy, Gemmeo, Hondex, Lirachy, Incoroy, Inland Empire, Splendid Life, Vovoyace, and Zozonid with the specific supplier-importer combinations presented in Table 2 below:⁶²

Table 2: Suppliers Identified in Zinus Allegations, Compared with 7856		
Korean Supplier	7913 Importers	7856 Importers ("November 2nd allegation")
[Company Name] (Supplier S)	Alexand	Beanomy, Heniddy, IYEE Nature, Kakaivy, Kelanch, Sunwind, Ryan James Engineering, Weekaly, Xinshidian Trading, and Zevoky
[Company Name] (Supplier D)	Gemmeo, Lirachy, Zozonid	Kakaivy, Ryan James Engineering
[Company Name] (Supplier H)	Incoroy, Bentensh	N/a
[Company Name] (Supplier F)	Alexand, Hondex, Vovoyace	Beanomy Inc.
[Company Name] (Supplier Z)	Inland Empire, Splendid Life	N/a

Source: The Zinus Allegations at 21-23.⁶³

4. Information Indicating that Specific Suppliers Have Insufficient Production Capacity

Zinus provided evidence that the Korean suppliers identified in its Allegations do not have the capacity to produce mattresses by providing Google image results for the suppliers' addresses,

⁵⁸ See the Zinus Allegations at 25-28, and Exhibits 1a, 1b, and 23 through 33. See also NOI at 8.

⁵⁹ See the Zinus Allegations at 25-28, and Exhibits 1a, 1b, and 23 through 33.

⁶⁰ *Id.* at 28-29, 31 and Exhibit 22.

⁶¹ *Id.* at Exhibit 16a.

⁶² *Id.* at 22.

⁶³ *Id.* at 21-23. Zinus explains that the Allegations in this current investigation are related to the Allegations filed in EAPA Cons. 7856. See the Zinus Allegations at 1, and 3-4. See also EAPA 7856 NOI. Separately, CVB cites the Notice of Initiation of Investigation and Interim Measures in EAPA Cons. 7856 and provides this notice in the Allegation Supplement at Exhibit B.

which show that Supplier D appears to be located in a small market plaza with no evidence of a mattress factory;⁶⁴ Supplier H appears to be located at a small 6-story commercial office building with restaurants on the ground floor;⁶⁵ Supplier F appears to be based in a 4-story commercial building with convenience stores on the ground floor; and Supplier Z is located at another commercial office address with unrelated businesses.⁶⁶

The Zinus Allegations also included additional evidence from an affidavit attesting that production of mattresses in Korea was far more limited than the volumes of mattresses imported into the United States from Korea within the past year. Zinus submitted an affidavit from [name], the Director of Supply Chain Management at Zinus' Korean parent company. He attested that, in his capacity as the Director of Supply Chain Management for a global mattress company based in Korea, he has extensive firsthand knowledge of the global mattress supply chain in general, and the Korean mattress industry in particular. Based on this knowledge, Mr. [name] attested that "the increase in U.S. imports from Korea, as indicated in official import statistics, could not be supplied by Korean manufacturers."⁶⁷

CVB provided evidence that the mattresses Lincody imported from Indonesia were also likely not produced by its Indonesian supplier, PT Foshan Aiyi Indonesia Internasional (Aiyi Indonesia), the Indonesian affiliate of Molbly. CVB's Allegations provided screenshots of Foshan Aiyi's website describing substantial investment in overseas production in Vietnam but no description of investment in countries other than Vietnam. These screenshots describe Foshan and Huizhou, China; Vietnam; and Indonesia as "the world's four major production centers" for Aiyi, but there is no further information about investment in Indonesia.⁶⁸ This indicates that Aiyi Indonesia may have never produced mattresses. Further, CVB provided printouts from an Indonesian news site showing that there was a fire at Aiyi Indonesia in February 2023, which burned down this facility.⁶⁹ However, CVB provides BOLs from ImportInfo showing that both Lincody and [company name] acted as U.S. consignees for shipments of mattresses from Aiyi Indonesia less than one year after the fire.⁷⁰ Therefore, even if Aiyi Indonesia once had mattress production capacity, it is unlikely that it was operational when it shipped mattresses to these U.S. consignees. CVB contends that, if not made at Aiyi Indonesia's facility, the mattresses were likely produced in China or Vietnam.⁷¹ According to CVB, the news article about Foshan Aiyi's transshipment scheme, and information on Foshan Aiyi's website about overseas investment in production in Vietnam, and Aiyi Indonesia's affiliation with Foshan Aiyi, all suggest Foshan Aiyi engaged in transshipment and duty evasion.⁷²

CVB also provided BOL shipment data in its supplement to allegation numbers 7946 and 7950, which indicated that [company name] (Supplier 1), the supplier of mattresses to Newland, had shipped an average of approximately 30,000 mattresses

⁶⁴ See the Zinus Allegations at 22-23.

⁶⁵ *Id.* at 23.

⁶⁶ *Id.* at 25.

⁶⁷ *Id.* at Exhibit 21.

⁶⁸ See Allegations 8047 and 8049 at Exhibit 7.

⁶⁹ *Id.* at Exhibit 9.

⁷⁰ *Id.* at Schedule 3.

⁷¹ *Id.* at 7-9.

⁷² *Id.* at 5-8 and Exhibit 9.

per month from [time period].⁷³ CVB's Allegations provided information about a U.S. mattress factory indicating that a 90,000-square-foot factory is needed to produce 30,000 mattresses per month;⁷⁴ however, based on Google Maps, it appears that Supplier 1's factory is only about 45,000 square feet.⁷⁵ Based on this information, CVB contended that Supplier 1's factory is likely too small to produce all the mattresses it exported to Newland in 2024.⁷⁶ CVB also provided a BOL which lists Newland as [party type], Supplier D as [party type, and company name and party type].⁷⁷ CVB also provided the 7856 NOI which identified Supplier D as a supplier that was transshipping Chinese mattresses through Korea,⁷⁸ and CVB pointed out that U.S. Importers participating in the importation of mattresses from Korean suppliers named in EAPA 7856 likely were involved in the Molbly scheme.⁷⁹ Based on this evidence, CVB alleged that if not made at Supplier 1's Indonesian facility, the mattresses Newland received from Supplier 1 were likely Chinese-origin.⁸⁰

On July 3, 2024, in accordance with 19 C.F.R. § 165.12(a), the Trade Remedy Law Enforcement Directorate (TRLED), within CBP's Office of Trade, formally acknowledged receipt of the Allegers' properly filed EAPA Allegations concerning evasion by the Importers.⁸¹ Pursuant to 19 C.F.R. § 165.2, entries covered by an EAPA investigation are those "entries of allegedly covered merchandise made within one year before the receipt of an allegation" Entry is defined as an "entry for consumption, or withdrawal from warehouse for consumption, of merchandise in the customs territory of the United States...."⁸² At its discretion, CBP may also investigate entries of covered merchandise outside of that period.⁸³ CBP was reviewing certain entries by the Importers covering the entire calendar year of 2023 for potential evasion of AD/CVD duties on mattresses before CVB filed its allegations.⁸⁴ Therefore, CBP extended the period of investigation to those entries that were entered for consumption, or withdrawn from warehouse for consumption, from January 1, 2023, through the pendency of this investigation.⁸⁵

Initiation

TRLED will initiate an investigation if it determines that "{t}he information provided in the allegation ... reasonably suggests that the covered merchandise has been entered for consumption into the customs territory of the United States through evasion...."⁸⁶ Evasion is defined as "the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral

⁷³ See Newland Version of Allegation Supplement at 5 and Exhibit D.

⁷⁴ *Id.* at 5 and Exhibit E.

⁷⁵ *Id.* at 5 and Exhibit C.

⁷⁶ *Id.* at 5, Exhibit D, and Exhibit E.

⁷⁷ *Id.* at Schedule 3, page 57.

⁷⁸ *Id.* at Exhibit B.

⁷⁹ *Id.* at 2-3.

⁸⁰ *Id.* at 5.

⁸¹ See CBP's Email to CVB, "Official Receipt of Allegations from CVB," dated July 3, 2024; and CBP's Email to Zinus, "Official Receipt of Allegations from Zinus," dated June 3, 2024.

⁸² See 19 C.F.R. § 165.1.

⁸³ See 19 C.F.R. § 165.2.

⁸⁴ See EAPA 7856 NOI.

⁸⁵ See, e.g., NOI at 5.

⁸⁶ See 19 C.F.R. § 165.15(b)(2); see also 19 U.S.C. § 1517(b)(1).

statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”⁸⁷ Thus, an allegation must reasonably suggest not only that an importer alleged to be evading entered merchandise subject to an AD/CVD order into the United States, but also that such entry was made by a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD/CVD cash deposits or other security.

In assessing the evidence provided in the Allegations, TRLED found that information reasonably suggested that the Importers imported mattresses covered by the *Orders* by means of evasion by transshipping the mattresses through the Third Countries.⁸⁸ Specifically, the Allegations demonstrate that each of the Importers entered mattresses that are covered by the *Orders* if made in China, Vietnam, or Indonesia. Additionally, the Allegations describe an evasion scheme involving transshipment of mattresses with what the Allegers characterize as improper labels and provided evidence (e.g., the sample mattress tags) showing that the Importers behave similarly in a scheme to avoid paying applicable AD/CVD duties as per the *Orders*. The Allegations also provided evidence that most of the suppliers of mattresses to the Importers likely have no capacity to produce mattresses in the Third Countries. Therefore, on July 25, 2024, TRLED initiated EAPA consolidated investigation 7913.⁸⁹

Consolidation of Investigations

As explained in the NOI, CBP consolidated the EAPA investigations arising from the Allegations into a single investigation at the time of initiation under EAPA Cons. 7913.⁹⁰

Research Conducted by CBP

Research Concerning Aiyi Indonesia

On September 25, 2024, CBP officials visited the Indonesian address of Aiyi Indonesia, [address], and discovered that another company called [company name] (Supplier X) is now located there.⁹¹ Notably this is the [entity information] as the one listed for Aiyi Indonesia on the Lincody BOL CVB provided in the Allegations.⁹² The current owners of Supplier X acknowledged that it was previously called [company name].⁹³ During the site visit, company employees told CBP officials that Supplier X has never produced mattresses under its current name or at its current

⁸⁷ See 19 C.F.R. § 165.1; see also 19 U.S.C. § 1517(a)(5)(A).

⁸⁸ See generally NOI.

⁸⁹ See CBP’s Memorandum, “Initiation of Investigation for EAPA Cons. Case Number 7913,” dated July 25, 2024 (Initiation Memo).

⁹⁰ See generally NOI.

⁹¹ See CBP’s Memorandum, “Re: Indonesia Site Visit,” dated October 3, 2024 (Indonesia Site Visit Memo) at 1.

⁹² See CVB China Allegations at Schedule 3, page 27.

⁹³ See Indonesia Site Visit Memo at 1, CVB Allegations at 1, 5 and Exhibit 5.

location.⁹⁴ Supplier X company officials also stated that production would begin at the current location within [time period] of the date of the site visit but had not yet started.⁹⁵

Supplier X company officials explained further that the company had changed ownership to the current owners on [date], which was when the company's name changed to Supplier X. Company officials also stated that they had no information about its operations under the previous management under the name of [company name], except that when the company was operating under the former management and previous name, its address was [address]

].⁹⁶ CBP officials visited the site of this former facility and discovered that [description] at this location and [description]

].⁹⁷ The condition of Supplier X's former location indicates that after the fire at Aiyi Indonesia, the company never resumed production at that location.⁹⁸

In August 2024, CBP examined cargo in entry numbers [#]7682,⁹⁹ [#]2472,¹⁰⁰ and [#]2506¹⁰¹ imported by Lincody in July and August 2024.¹⁰² According to documents accompanying the entry numbers ending in 7682, 2472, and 2506 (*i.e.*, BOLs, 7501s, packing lists (PLs), and invoices), the merchandise in these entries was produced by Supplier X and consisted of [items] under harmonized tariff schedule (HTSUS) number 9404.21.0095.¹⁰³ Since this was after the fire at Aiyi Indonesia¹⁰⁴ and before Supplier X had begun mattress production,¹⁰⁵ Lincody likely made a false statement when it identified Aiyi Indonesia as the manufacturer and Indonesia as the COO for these entries.¹⁰⁶

Importer-Specific Trade Data

CBP reviewed information from its own systems and found that Haiide imported at least [#] entries declared as "[items]" not covered by the *Orders* with corresponding BOLs describing the merchandise in those shipments as "mattresses." These entries were declared as [descriptor]-origin, so these mattresses are likely covered by at least one of the *Orders*. This suggests that Haiide misclassified its merchandise as [items] upon entry to evade the *Orders*.¹⁰⁷

⁹⁴ See Indonesia Site Visit Memo at 1-2.

⁹⁵ See Indonesia Site Visit Memo at 1-2.

⁹⁶ *Id.* at 2.

⁹⁷ *Id.* at 2 and Attachment 2.

⁹⁸ See Allegation number 8047 and 8049 at Exhibit 9.

⁹⁹ See Cargo Exam Memo at Attachment 1.

¹⁰⁰ *Id.* at Attachment 2.

¹⁰¹ *Id.* at Attachment 3.

¹⁰² *Id.* at Attachments 1-3.

¹⁰³ *Id.* at Attachments 1-3.

¹⁰⁴ See Supplement to Allegation Nos. 8047 and 8049 at Exhibit 9.

¹⁰⁵ See Indonesia Site Visit Memo at 1-2.

¹⁰⁶ See Cargo Exam Memo at Exhibits 1-3.

¹⁰⁷ See CBP's Memorandum, "EAPA Case No. 7913 Cons. – Haiide Shipment," dated August 27, 2024 (Haiide Shipment Memo) at Attachment 1. See also, EAPA Receipt Report for Haiide.

CBP also found information in its own systems indicating that Anlowo imported at least [#] entries declared as “[items].” Anlowo declared these entries as type 01 not subject to AD/CVD orders. However, CBP data systems also indicate that these entries correspond to BOLs that describe the merchandise in these entries as “mattresses.” This suggests that Anlowo may be entering Chinese-origin covered merchandise misclassified as “[items]” to evade the *China Orders*.¹⁰⁸

CBP analyzed importer-specific data from CBP systems to determine whether the evasion schemes described by the Allegers could be occurring and found relevant entries for the named Importers.¹⁰⁹ CBP discovered that Sunshine Intl has imported entries of [descriptor] mattresses declared as type 01, which means not covered by the *Orders*. However, the declared manufacturer is [company name] (Supplier 5).¹¹⁰ CBP discovered from a cargo examination of an entry imported by a different importer that Supplier 5 is a Chinese manufacturer of [material] mattresses that are covered by the *China Orders* and [items].¹¹¹

Supplier-Specific Trade Data

CBP also placed supplier-specific import and export data about [descriptor] suppliers on the record. This data showed that the [descriptor] suppliers [company name] (Supplier 10), Supplier 3, [company name] (Supplier G) and [company name] (Supplier 7) received mattress imports [trade channel] from [locations]. Then, after each import shipment, of mattresses with a given set of dimensions, each of these suppliers then [business activity].¹¹² Furthermore, CBP Forms 7501s (7501s) show that U.S. Importers that imported mattresses from the [descriptor] suppliers declared all their imports as [descriptor] in spite of the trade data indicating that at least some of these entries contained [descriptor and items].¹¹³

Other Cargo Examinations

CBP also examined merchandise in entry number [#] 8698 in August 2024,¹¹⁴ even though the importer was [company name] (Importer O), which is not an importer named in the Allegations,¹¹⁵ because the seller and declared manufacturer was Supplier 5. According to the 7501, invoice, and PL accompanying the entry number ending in 8698, the merchandise in the shipment consisted of [items], [items], and [items] outside the scopes of

¹⁰⁸ See CBP’s Memorandum, “EAPA Cons. Case No. 7913 Cons. – Anlowo Shipments,” dated September 1, 2024 (Anlowo Shipment Memo) at Attachment 1.

¹⁰⁹ See EAPA Receipt Report.

¹¹⁰ *Id.*

¹¹¹ See CBP’s Memorandum, “Adding Cargo Examinations to the Record of EAPA 7913 Cons,” dated October 15, 2024 (Cargo Exam Memo) at Attachment 4.

¹¹² See CBP’s Memorandum, “EAPA Cons. Case No. 7913 Cons. – Supplier Trade Data,” dated September 1, 2024 (Supplier Trade Data Memo).

¹¹³ See EAPA Receipt Report.

¹¹⁴ See Cargo Exam Memo at 1 and Attachment 5.

¹¹⁵ See the Allegations.

the *Orders*. However, photographs from the examination showed that the merchandise in this shipment consisted of [items] (i.e., merchandise that is covered by the *Orders* if made in China, Vietnam or Indonesia).¹¹⁶ The merchandise was declared as [descriptor]-origin, and the manufacturer's address was listed as [company name and address].¹¹⁷ This indicates that Supplier 5 produces mattresses in [location]. Additionally, the BOL, PL, and invoice issued by Supplier 5 all describe the merchandise as [items] and [items] outside the scope of the *Orders*, even though this merchandise was, in fact, mattresses subject to the scope of the *Orders*. This indicates that Supplier 5 provided fraudulent shipping and invoice documents to facilitate evasion of the *China Orders* by misclassification. Deluxe Home has also received shipments of mattresses from Supplier 5, which Deluxe Home declared as [descriptor]-origin, even though there is evidence that Supplier 5 produces mattresses in mainland China rather than [location].¹¹⁸ The fact that that Deluxe Home identified the same Chinese manufacturer as the manufacturer of merchandise it imported from [location] indicates that Deluxe Home likely evaded the *China Orders* by declaring the wrong country of origin for its entries of mattresses from Supplier 5.

Other Site Visits

On September 27, 2024, CBP officials conducted site visits to the known addresses of Taiwanese suppliers [company name] (Supplier Y), [company name] (Supplier R), and [company name] (Supplier W). CBP officials observed that Supplier Y's address appears to be a small grocery shop and Supplier Y's name does not appear anywhere on this building. Supplier R's address was a commercial building with multiple tenants that appeared to be retail shops and offices. Supplier R's name was not on the list of building tenants. Supplier W's address appears to be a residential apartment building. None of the addresses of these suppliers are factories.¹¹⁹

On September 30, 2024, CBP officials visited the location of Supplier 1 in Indonesia. The site visit team met with company officials and toured Supplier 1's facilities. Company officials told the team that the company had [#] employees with [#] mattress production lines and produced approximately [numbers and items] mattresses per month. CBP officials observed raw materials, [#] of employees, use of machines producing mattresses, and a large warehouse containing finished mattresses packed for shipment. The site visit team took extensive photographs of operations at Supplier 1's facility.¹²⁰

CBP Form 28s

On July 30, 2024; August 9, 2024; and September 3, 2024, CBP issued CBP Form 28 requests for information (CF-28), requesting information regarding at least one entry from each of the

¹¹⁶ See Cargo Exam Memo at Attachment 3 and the *Orders*.

¹¹⁷ *Id.* at Attachment 3.

¹¹⁸ See EAPA Receipt Report, especially entry number [#]4627.

¹¹⁹ See CBP's Memorandum, "EAPA Cons. 7913 – Taiwan Site Visits," dated October 17, 2024 (TW Site Visit Memo). See also Addendum Supplier Names and Abbreviations.

¹²⁰ See CBP's Memorandum, "Adding Supplier 1 Site Visit to the Record of EAPA Cons. 7913," dated December 2, 2024.

Importers during the POI.¹²¹ CBP requested a narrative response to CBP's questions, company profiles for each importer, descriptions of the merchandise, a description of the production process, the name and address of the manufacturer, photographs of the interior and exterior of the factory where the merchandise was produced (including equipment used in production), employee timecards for workers involved in production, raw material purchase documents such as invoices or purchase orders (POs) for the main raw materials used in production, shipment documents such as BOLs and PLs, and any purchase documents (*e.g.*, invoices) for the goods in each entry. CBP requested this information to determine whether the manufacturers of these entries had the capacity to manufacture mattresses.

Importers Who Submitted CF-28 Responses

1. Alexand

On August 29, 2024, Alexand submitted its responses to the CF-28s for entry numbers 9190 and 3838.¹²² CBP systems indicate that Alexand declared Supplier S and Supplier F as the suppliers for entry numbers 9190 and 3838, respectively, and entered the merchandise as Korean-origin mattresses under HTSUS subheadings that would be covered by the *Orders* if made in China, Vietnam, or Indonesia. Alexand declared that these mattresses were not subject to AD/CVD duties.¹²³ Alexand only furnished the 7501s, BOLs, and invoices from Supplier S and Supplier F, and its power of attorney agreement (POA) with its customs broker, which CBP did not request. Alexand provided none of the production documents (*e.g.*, factory photographs, manufacturer timecards, raw material purchase documents) that CBP requested, and provided no narrative answering the questions CBP asked in the CF-28s.¹²⁴ Therefore, Alexand's CF-28 responses do not provide sufficient evidence to support the purported Korean-origin of these mattresses. Notably, CBP found in EAPA Cons. 7856 that Suppliers S and F have no mattress production capacity in Korea¹²⁵ and the POI in EAPA 7856 from November 3, 2022, until September 19, 2024, overlaps the POI in EAPA Cons. 7913.¹²⁶

2. Alloeck

¹²¹ See CF-28 requests for information for entry numbers [#]9190, [#]3838, [#]0314, [#]8897, [#]8285, [#]4217, [#]0697, [#]2511, [#]1398, [#]1469, [#]5973, [#]2289, [#]4879, [#]2575, [#]8934, [#]5764, [#]0562, [#]2596, [#]9682, [#]6170, [#]8513, [#]6925, [#]1482, [#]6978, [#]6447, [#]5145, [#]9818, [#]0605, [#]8193, [#]4648, [#]9969, [#]8952, [#]3156, [#]7046, [#]1292, [#]8614, [#]9365, [#]0871, [#]0518, [#]5367, dated July 30, 2024. CBP issued CF-28s requesting information for entry numbers [#]7498 and [#]6423 to importer Wuleitex on August 9, 2024. See CF-28 requests for information for entry numbers [#]7498 and [#]6423, dated August 9, 2024. CBP also issued CF-28s requesting information for entry numbers [#]4193, [#]0462, and [#]9173 on September 3, 2024. See CF-28s for entry numbers [#]4193, [#]0462, and [#]9173, dated September 3, 2024.

¹²² See Alexand's CF-28 Responses for entry numbers 9190 and 3838.

¹²³ See CF-28s for entry numbers 9190 and 3838. See also EAPA Receipt Report.

¹²⁴ See Alexand's CF-28 Responses for entry numbers 9190 and 3838. See also CF-28's for entry numbers 9190 and 3838.

¹²⁵ See EAPA 7856 Determination Notice at 4 and 7.

¹²⁶ *Id.* at 1-2.

On August 27, 2024, Alloech provided its CF-28 response for entry number 0314, and on September 16, 2024,¹²⁷ Alloech provided a response for entry number 8897.¹²⁸ The response deadline for these entries was August 29, 2024, 30 days after CBP issued the CF-28s, and CBP did not extend this deadline, so Alloech's response for entry number 8897 was late.¹²⁹ Alloech did not provide any response to the CF-28 requesting information for entry number 8285.¹³⁰

In its response for entry 0314, Alloech stated that [company name] (Supplier U) manufactured the mattresses for this entry in [location]. Alloech stated in its response that the merchandise consisted of [items] with [items] with neutral brand.”¹³¹

The mattresses in this shipment, therefore, are covered by the scopes of the *Orders*, if made in Indonesia, China, or Vietnam, but the [items] included in the shipment were not.¹³² The production process flow chart Alloech provided indicates that the mattresses included in this shipment contained [items] because the first production step listed was [items] {sic.} and the production process flow chart did not mention the use of [item] to make the mattress.¹³³ However, the only raw material for which Alloech provided purchase documents was [item].¹³⁴ The factory photographs show about [#] employees, but the employee timecards Alloech provided only show the names of [#] employees. None of the photographs Alloech provided show any workers at Supplier U's facility making or using [items] in mattress production.¹³⁵

In its response for entry number 8897, Alloech provided a brief narrative description of its company and stated that the imported merchandise in this entry consisted of “[items],”¹³⁶ The mattresses, if made in China, Indonesia, or Vietnam, would be covered by the *Orders*, but the [items] are not covered merchandise.¹³⁷ Alloech also stated that the mattresses were produced in [location] by Supplier U.¹³⁸ This directly contradicts the 7501 Alloech filed at time of entry because Alloech declared this entry as type 01,

¹²⁷ See Alloech's CF-28 Response for entry 0314.

¹²⁸ See Alloech's CF-28 Response for entry 8897.

¹²⁹ See CF-28 for entry 8897.

¹³⁰ See Alloech's CF-28 for entry 8285.

¹³¹ See Alloech's CF-28 Response for entry 0314.

¹³² See the *Orders*, provided in the CVB China Allegations at Schedule 2 and 3 and the CVB Vietnam Allegations at Schedule 1. Notably, the scope “encompasses all types of “innerspring mattresses,” “non-innerspring mattresses,” and “hybrid mattresses.” “Innerspring mattresses” contain innersprings, a series of metal springs joined together in sizes that correspond to the dimensions of mattresses. Mattresses that contain innersprings are referred to as “innerspring mattresses” or “hybrid mattresses.” “Hybrid mattresses” contain two or more support systems as the core, such as layers of both memory foam and innerspring units. “Non-innerspring mattresses” are those that do not contain any innerspring units. They are generally produced from foams (e.g., polyurethane, memory (viscoelastic), latex foam, gel-infused viscoelastic (gel foam), thermobonded polyester, polyethylene) or other resilient filling.”

¹³³ See Alloech's CF-28 Response for entry 0314.

¹³⁴ *Id.*

¹³⁵ See Alloech's CF-28 Response for entry 0314.

¹³⁶ See Alloech's CF-28 Response for entry 8897.

¹³⁷ See the *Orders*.

¹³⁸ See Alloech's CF-28 Response for entry 8897.

not subject to AD/CVD duties and declared [location] as the country of origin.¹³⁹ Therefore, Alloech's CF-28 response for this entry implies that Alloech entered it through evasion, as the incorrect country of origin was declared upon entry, and the importer declared the entry was not subject to AD/CVD duties.

Further, the information Alloech provided is not sufficient to demonstrate that entry 8897 was produced in [location], rather than in China or Vietnam, because Alloech provided factory photographs with this entry showing only [#] employees engaged in production.¹⁴⁰ Notably, the AD/CVD rates for China (57.03% to 1,731.75% AD and 97.78% CVD) and the AD rates for Vietnam (ranging from 144.92 to 668.38%) are substantially higher than the 2.22 % rate for Indonesia.¹⁴¹ Alloech also provided identical timecards (listing the same employee names, working dates, hours, *etc.*) for the same [#] employees it had earlier provided for entry 0314, which indicates that these timecards may be fraudulent. Alloech provided only a single PO from the purported manufacturer, Supplier U for [items] sourced from an [descriptor] supplier, but Alloech did not provide POs for other raw materials.¹⁴² The PL Alloech provided for this shipment describes the merchandise as [#] mattresses made of [items], which means that the manufacturer would have needed to purchase [item] to produce these mattresses.¹⁴³ Therefore, Alloech's admission that this merchandise was not [descriptor] as claimed in the 7501, combined with the limited information it provided about production, reasonably suggests that Alloech entered this merchandise by means of evasion.

In addition to admitting that it declared the wrong country of origin for entry number 8897 at time of entry and failing to provide sufficient information to support its claim that Supplier U produced this entry, Alloech failed to provide any information about entry number 8285, even after CBP sent Alloech a second email requesting the information on September 12, 2024.¹⁴⁴ According to CBP systems, Alloech declared this entry as not covered by AD/CVD duties and declared the merchandise as [descriptor and items].¹⁴⁵ The 7501 also indicates that this entry would be covered by the *Orders* if produced in China, Vietnam, or Indonesia.¹⁴⁶ Alloech's failure to provide any information about the manufacturer (*e.g.*, factory photographs or timecards) or even the PL, BOL, or invoices that CBP requested,¹⁴⁷ combined with Alloech's false country of origin declaration for entry 8897 described above,¹⁴⁸ indicates that this merchandise was not manufactured in [location].

3. Anlowo

¹³⁹ See Alloech's CF-28 Response for entry 8897, compared with entry number 8897 in the EAPA Receipt Report.

¹⁴⁰ See Alloech's CF-28 Response for entry 8897.

¹⁴¹ See the *Orders*.

¹⁴² See Alloech's CF-28 Response for entry 8897.

¹⁴³ *Id.*

¹⁴⁴ See CBP's Email, "CBP Form 28 Follow Up," dated September 12, 2024.

¹⁴⁵ See Alloech's CF-28 Response for entry 8897 and EAPA Receipt Report.

¹⁴⁶ See Alloech's CF-28 Response for entry 8285 and EAPA Receipt Report. See also the *Orders*.

¹⁴⁷ See Alloech's CF-28 Response for entry 8285.

¹⁴⁸ See Alloech's CF-28 Response for entry 8897, compared with entry number 8897 in the EAPA Receipt Report.

Anlowo submitted its response for entry number 4217 on August 27, 2024.¹⁴⁹ The 7501, PL, BOL and invoice Anlowo provided all identify the country of origin as [location].¹⁵⁰ However, these documents also describe the merchandise as [items], which would not be covered by the *Orders*.¹⁵¹ Anlowo provided none of the production documents that CBP requested, or any written narrative about its operations or the merchandise in this entry in its CF-28 response.¹⁵² Therefore, CBP sent Anlowo an email requesting the additional documents on September 4, 2024.¹⁵³ However, Anlowo never provided the additionally requested information.¹⁵⁴ Zinus provided information in its Allegations showing that Anlowo is a Foshan Aiyi-owned trademark.¹⁵⁵ As explained above, CBP data also indicates that Anlowo has declared entries as [items] on its 7501s in the past, while corresponding BOLs accompanying these 7501s identify the merchandise as “mattresses” that would be covered by the *Orders* because [location] is the declared country of origin.¹⁵⁶ Therefore, the limited documents Anlowo provided in its incomplete CF-28 response for entry number 4217 do not substantiate the country of origin or the type of merchandise declared, and the incompleteness of its response contributed to CBP’s determination that there was reasonable suspicion of evasion.¹⁵⁷

4. Bentensh

Bentensh provided a 7501, a BOL, and invoice which identified the merchandise in entry number 0697 as mattresses produced by Supplier 1 and a type 03 entry, covered by the [location] *Order*.¹⁵⁸ However, Bentensh’s response did not include information that CBP requested to substantiate the claimed countries of origin (e.g., photographs of the manufacturing facilities where the entries were produced, timecards for the workers who produced the merchandise, or any purchase documents for raw materials). Without this information, nothing in Bentensh’s CF-28 responses supported its claim that its mattresses were produced in [location].¹⁵⁹ Since CVB provided evidence that Supplier 1’s factory is too small to produce the quantity of mattresses it sold the Importers,¹⁶⁰ this supported a reasonable suspicion that the merchandise in this entry was not produced in [location].¹⁶¹ Notably, the AD duty rates on [descriptor] mattresses are substantially lower than the rates on Chinese mattresses.¹⁶²

¹⁴⁹ See Anlowo’s CF-28 Response for entry 4217.

¹⁵⁰ *Id.*

¹⁵¹ *Id.* See also the *Orders*.

¹⁵² See Anlowo’s CF-28 Response for entry 4217.

¹⁵³ See CBP’s Email, “CBP request for information for entries [#]4217 through [#]6925,” dated September 4, 2024. This email was sent to Anlowo, Deluxe Home and Lirachy and referenced entry numbers 4217, 2289, 4879, 2575, 8934, and 6925.

¹⁵⁴ See Alloeche’s CF-28 for entry 8285.

¹⁵⁵ See Zinus Allegations at Exhibit 1a.

¹⁵⁶ See Anlowo Shipment Memo at Attachment 1.

¹⁵⁷ See Anlowo’s CF-28 Response for entry 4217. See also NOI.

¹⁵⁸ See Bentensh’s CF-28 Response for entry 0697. See also the *Orders*.

¹⁵⁹ *Id.*

¹⁶⁰ See Newland Version of Allegation Supplement at 5 and Exhibit D.

¹⁶¹ See NOI.

¹⁶² See the *Orders*.

Bentensh also provided BOLs, 7501s, and invoices for entries 1398¹⁶³ and 2511 without any of the production photographs, employee timecards, or other evidence of actual production CBP that requested.¹⁶⁴ The BOLs, 7501s, and invoices for these entries stated that the merchandise consisted of mattresses produced in [location] by Supplier 7 and in [location] by Supplier S for entries 1398 and 2511, respectively.¹⁶⁵ Notably, Supplier S supplied mattresses to importers in EAPA Cons. 7856 who CBP determined were evading the *China Orders* by transshipment through Korea and in EAPA Cons. 7856, CBP found no evidence that Supplier S has any capacity to produce mattresses in Korea.¹⁶⁶ The POI in EAPA 7856 was November 3, 2022 until September 19, 2024, so it overlapped the POI in EAPA Cons. 7913.¹⁶⁷ Bentensh also provided a copy of its POA with its broker and a copy of its CEO's passport (which CBP did not request), instead of the factory photographs, employee timecards, and other production information that CBP requested.¹⁶⁸ On September 4, 2024, CBP emailed Bentensh requesting the missing information from Bentensh's CF-28 responses for entries 0697, 2511, and 1398, but Bentensh did not respond with any of the missing information.¹⁶⁹ The fact that Bentensh imported mattresses from a Korean supplier¹⁷⁰ that does not have production in Korea,¹⁷¹ while failing to provide any production documents,¹⁷² supported a reasonable suspicion of evasion.

5. Deluxe Home

On August 27, 2024, Deluxe Home submitted CF-28 responses for entry numbers 2289, 2575, 4879, and 8934. However, its responses did not contain a written narrative response to CBP's questions, a description of the merchandise in the entries, a company profile, or any of the production documents that CBP requested.¹⁷³ Accordingly, CBP sent Deluxe Home an email requesting the missing information on September 4, 2024.¹⁷⁴ On September 13, 2024, Deluxe Home submitted supplemental CF-28 responses for each of the four entries including production documents and a written narrative response to the questions CBP asked in its CF-28s.¹⁷⁵

¹⁶³ See Bentensh's CF-28 Response for entry 1398.

¹⁶⁴ See Bentensh's CF-28 Response for entry 2511.

¹⁶⁵ See Bentensh's CF-28 Responses for entries 1398 and 2511.

¹⁶⁶ See EAPA 7856 Determination Notice at 7.

¹⁶⁷ *Id.* at 3.

¹⁶⁸ See Bentensh's CF-28 Responses for entries 1398 and 2511.

¹⁶⁹ See CBP's Email, "CBP request for information for entries [#]0697 through [#]1398," dated September 4, 2024.

¹⁷⁰ See Bentensh's CF-28 Response for entry 2511.

¹⁷¹ See EAPA 7856 Determination Notice at 7.

¹⁷² See Bentensh's CF-28 Response for entry 2511.

¹⁷³ See CF-28s for entry 2289, entry 2575, entry 4879, and entry 8934. See also Deluxe Home's CF-28 Response for entry 2289, entry 2575, 4879, and entry 8934.

¹⁷⁴ See CBP's Email, "CBP request for information for entries [#]4217 through [#]6925," dated September 4, 2024. This email was sent to Anlowo, Deluxe Home, and Lirachy and requested missing documents for entry numbers 4217, 2289, 4879, 2575, 8934, and 6925.

¹⁷⁵ See Deluxe Home's Letter, "Response to Request for Information CF-28 For Entry Number [#]2289," dated September 13, 2024 (2289 Supp CF28 Response); Deluxe Home's Letter, "Response to Request for Information CF-28 For Entry Number [#]2575," dated September 13, 2024 (2575 Supp CF28 Response); Deluxe Home's Letter, "Response to Request for Information CF-28 For Entry Number [#]4879," dated September 13, 2024 (4879 Supp CF28 Response); and Deluxe Home's Letter, "Response to Request for Information CF-28 For Entry Number [#]8934," dated September 13, 2024 (8934 Supp CF28 Response).

For Entry 2289, the 7501 identified the merchandise as [items], with [location] as the country of origin. The description of goods (*i.e.*, the size), on the invoice and PL indicates that these are [items],¹⁷⁶ rather than mattresses, and are thus outside the scope of the *Orders*.¹⁷⁷ The BOL also indicated that this shipment contained [items] produced in [location]. Deluxe Home reported the manufacturer of the [items] as Supplier 5 located in [location]. Deluxe Home submitted photographs of the exterior and interior of Supplier 5's production facility, timecards for dozens of workers involved in the production of these entries, and invoices for the primary raw materials used in the production of [items].¹⁷⁸

For entry 2575, the 7501 identified the merchandise as mattresses (under HTSUS 9404.21.0095), the country of origin as [location], and the manufacturer as Supplier D.¹⁷⁹ Deluxe Home also furnished a PO, BOL, and invoice which describe the merchandise in this entry as [item] and [item],¹⁸⁰ which would be covered by the *Orders* if made in China, Vietnam, or Indonesia.¹⁸¹ The PL is dated [date], and the BOL is dated [date],¹⁸² but the manufacturer timecards Deluxe Home provided for this entry are for the month of [month and year], which is later than the date the goods were packed and the containers were loaded on a ship. This indicates that the employee timecards provided are unrelated to this entry because workers could not have produced the mattresses after they were packed and shipped.¹⁸³

Deluxe Home also provided a country-of-origin certificate (COOC) from the [location] Chamber of Commerce and Industry in [location], attesting that the merchandise in entry 2575 was of [descriptor]-origin. However, CBP has observed fraudulent COOCs issued by chambers of commerce in past EAPA investigations, including EAPA 7699.¹⁸⁴ Additionally, Deluxe Home's COOC was dated [date] after the PL and BOL, which indicates that it may be fraudulent.¹⁸⁵ At the very least, the discrepancy in dates between the BOL and the COOC indicates that the issuing authority could not have verified the description and quantity because the shipment had already been loaded into a container for export at the time of issuance. The fact that Deluxe Home's documents all identified the manufacturer as Supplier D, a supplier in EAPA Cons. 7856 who CBP determined was transshipping Chinese mattresses through Korea and has no mattress production, further supports the conclusion that the mattresses are not Korean origin.¹⁸⁶

¹⁷⁶ See 2289 Supp CF28 Response at 3.

¹⁷⁷ See the *China Orders* provided in the CVB China Allegations at Schedule 1 and 2, and the *Indonesia Order* and *Vietnam Order* provided in Schedule 1 of the CVB Vietnam Allegations.

¹⁷⁸ See 2289 Supp CF28 Response at Attachments 4, Attachment 5 and Attachment 6.

¹⁷⁹ *Id.*

¹⁸⁰ See 2575 Supp CF28 Response at Attachment 2.

¹⁸¹ See the *China Orders* provided in the CVB China Allegations at Schedule 1 and 2, and the *Indonesia Order* and *Vietnam Order* provided in Schedule 1 of the CVB Vietnam Allegations.

¹⁸² See 2572 Supp CF28 Response at Attachment 2.

¹⁸³ *Id.* at Attachment 5.

¹⁸⁴ See CBP's Letter, "Re: Notice of Determination as to Evasion – EAPA Case Number 7699," dated December 20, 2022 (EAPA 7699 Determination Notice), available at <https://www.cbp.gov/document/publications/eapa-case-number-7699-cis-investments-llc-notice-determination-evasion> at 6.

¹⁸⁵ See Deluxe Home's CF-28 Response for entry 2575.

¹⁸⁶ See EAPA 7856 Determination Notice at 7 and 10. As explained above, the POI of 7856 overlapped the POI in the present investigation.

Deluxe Home provided photographs of the interior and exterior of Supplier D’s purported factory, showing a large building with Korean letters on it, but since there is no accompanying translation, it is unclear whether the name on this building is Supplier D’s. The interior photographs show many pieces of equipment not in use and show workers assembling a mattress [process].¹⁸⁷

In its September 13, 2024, supplemental response for entry 4879, Deluxe Home reported that the supplier of the mattresses in this entry was [company name] (supplier 8) located in [location].¹⁸⁸ Deluxe Home provided photographs of the factory, with a translated factory name on the exterior of the building and images of [#] employees packaging [items] and [items] into clear plastic sheets for shipment. The goods being packaged do not appear to be finished mattresses because they [description] or an [item].¹⁸⁹ However, the [items] are covered by the *Orders* if made in China, Vietnam, or Indonesia, while [items] are covered if made in Indonesia.¹⁹⁰ Deluxe Home also furnished timecards showing [#] employees during the month of October 2023, when Deluxe Home claims the mattresses for this entry were produced. Deluxe Home provided purchase invoices for [items], the raw materials purportedly used to produce this entry,¹⁹¹ which are dated several days before the raw material requisition records Deluxe Home provided for this entry.¹⁹²

For entry number 8934, the 7501 submitted by Deluxe Home identifies the merchandise as mattresses (under HTSUS 9404.21.0095 and 9404.29.9095), with country of origin [location] and country of export [location]. According to the PO, invoice, and PL, this entry contained [items].¹⁹³ These mattresses would be covered by the *Orders* if produced in China, Vietnam, or Indonesia.¹⁹⁴ Deluxe Home provided a commercial invoice from the producer, a BOL dated [date], and a COOC issued by the “[location] County Importers and Exportes {sic.} Chamber of Commerce,” dated [date]. The COOC has several indicators that it is fraudulent: (1) the word “Exporters” is misspelled “Exportes,” (2) it was issued by a chamber of commerce, and CBP has noted in

¹⁸⁷ See 2572 Supp CF28 Response at Attachment 4.

¹⁸⁸ See 4879 Supp CF28 Response.

¹⁸⁹ *Id.* at Attachment 4.

¹⁹⁰ See the *Orders*. Specifically, the *Orders* state that: “The products covered by this order are all types of youth and adult mattresses. The term “mattress” denotes an assembly of materials that at a minimum includes a “core,” which provides the main support system of the mattress, and may consist of innersprings, foam, other resilient filling, or a combination of these materials. Mattresses *may* also contain (1) “upholstery,” the material between the core and the top panel of the ticking on a single-sided mattress, or between the core and the top and bottom panel of the ticking on a double-sided mattress; and/or (2) “ticking,” the outermost layer of fabric or other material (e.g., vinyl) that encloses the core and any upholstery, also known as a cover {emphasis added}.” Although uncovered innersprings are covered by the AD orders on innerspring units from China and Vietnam, uncovered foam cores are not excluded from the *Orders*, even if made in China or Vietnam, and uncovered innerspring cores made in Indonesia are not excluded from the *Indonesia Order*.

¹⁹¹ See 4879 Supp CF28 Response at Attachment 5 and Attachment 6.

¹⁹² *Id.* at Attachment 3.

¹⁹³ See 8934 Supp CF28 Response at Attachment 2.

¹⁹⁴ See the *China Orders* provided in the CVB China Allegations at Schedule 1 and 2, and the *Indonesia Order* and *Vietnam Order* provided in Schedule 1 of the CVB Vietnam Allegations.

previous EAPA investigations that COOC's issued by Chambers of Commerce are less reliable than those issued by governments;¹⁹⁵ and (3) the date on the COOC is later than the date on the BOL.¹⁹⁶ At the very least, the discrepancy in dates between the BOL and the COOC indicates that the issuing authority could not verify the description and quantity of the merchandise because the shipment had already been loaded into a container for export at the time of issuance. Deluxe Home identified the manufacturer of these mattresses as [company name].¹⁹⁷ Deluxe Home provided photographs of the interior and exterior of the factory showing equipment and at least [#] employees engaged in mattress production, but most appear to be assembling the mattresses [process],¹⁹⁸ which indicates limited production capacity. Deluxe Home also furnished manufacturer timecards showing factory attendance for [#] production workers during the entire month of [month & year],¹⁹⁹ and raw material requisition documents showing withdrawal of raw materials including [items] in [month & year].²⁰⁰ The timecards also cover a period later than the date on the BOL, indicating that they are either fraudulent or not relevant to the period when this entry was produced.

6. Gemmeo

On August 27, 2024, Gemmeo submitted its response to the CF-28 for entry 5764, but the only requested documents Gemmeo provided were a 7501 and a BOL. Both documents identify the manufacturer as Supplier D and the merchandise was declared as [descriptor]-origin mattresses that would be covered by the *Orders* if made in China, Vietnam, or Indonesia.²⁰¹ CBP sent Gemmeo an email on September 4, 2024, requesting the rest of the information initially requested in the CF-28, but Gemmeo did not respond to this email with the missing information.²⁰² Notably, CBP determined that mattresses Supplier D sold to importers in EAPA Cons. 7856 were Chinese-origin.²⁰³ None of the documents Gemmeo provided in its CF-28 response include any proof of production (e.g., employee timecards or factory photographs). Therefore, the only information in Gemmeo's CF-28 response is that it sources mattresses from a supplier previously found to be involved in a scheme to evade the *China Orders* by transshipment through Korea.²⁰⁴

7. Haiide

On August 29, 2024, Haiide provided a BOL, 7501, invoice, and PL for entry 0562.²⁰⁵ These documents state that this entry contained [items] produced in Vietnam by Supplier

¹⁹⁵ See EAPA 7699 Determination Notice at 6.

¹⁹⁶ See Deluxe Home's CF-28 Response for 8934.

¹⁹⁷ See Deluxe Home's CF-28 Response for entry 8934 at 3.

¹⁹⁸ See 8934 Supp CF28 Response at Attachment 4.

¹⁹⁹ *Id.* at Attachment 5.

²⁰⁰ *Id.* at Attachment 3.

²⁰¹ See Gemmeo CF-28 Response for entry number 5764.

²⁰² See CBP's Email, "CBP request for information for entries [#] 5764 through [#] 1292," dated September 4, 2024, and (5764 through 1292 Email). The 5764 through 1292 Email requested missing information about entry numbers 5764, 6447, and 1292 and was sent to Gemmeo, Newland, and Vovoyace.

²⁰³ See EAPA 7856 Determination Notice.

²⁰⁴ See Gemmeo's CF-28 Response for entry number 5764.

²⁰⁵ See Haiide's CF-28 Response for entry number 0562.

L.²⁰⁶ [items] are outside the scope of the *Orders*.²⁰⁷ However, Haiide provided no narrative response to CBP’s questions, no written description of the merchandise in this entry, and no information about production.²⁰⁸ Therefore, Haiide’s partial CF-28 response was insufficient to confirm that the merchandise consisted of [descriptor]-made [items] outside the scope of the *Orders*, as Haiide declared upon entry. On September 4, 2024, CBP sent Haiide an email with a second opportunity to provide the requested information missing from its CF-28 response, but Haiide did not provide the missing information.²⁰⁹

Haiide’s 7501 declared the merchandise in this entry as “Other pillows and cushions” outside the scope of the *Orders*.²¹⁰ However, CBP data indicates that Haiide has a history of importing entries declared as “[items]” on its 7501s while describing the merchandise as “mattresses” on its BOLs.²¹¹ As explained above and in the NOI, this is indicative of misclassification.²¹² Because Haiide provided none of the requested production information, CBP has no information about the supplier’s production capabilities to make [items] and no information confirming that the merchandise in this entry was [items] rather than mattresses.²¹³ However, there is clear information in CVB’s Allegations indicating that Supplier L, the purported manufacturer of this entry, produces mattresses, and the entry documentation along with the location of the purported manufacturer suggest Vietnamese-origin.²¹⁴ Therefore, if this entry contained foam, spring, or hybrid mattresses, they would be subject to the scope of the *Vietnam Order*.²¹⁵

8. Lincody

Lincody provided the 7501, invoice, and PL for entry number 8513 on August 26, 2024.²¹⁶ These documents identify the merchandise in this entry as [material] mattresses from Supplier X, declared as type 03.²¹⁷ However, Lincody provided no narrative response to CBP’s questions, factory photographs, manufacturer raw material purchase records, production flow chart, or manufacturer timecards. The shipping and entry documents Lincody provided, therefore, do not provide any information to support the assertion that these mattresses were [descriptor]-origin.²¹⁸ On September 4, 2024, CBP gave Lincody a second opportunity to provide the missing information, but Lincody did not provide it.²¹⁹

²⁰⁶ *Id.*

²⁰⁷ See the *Orders*.

²⁰⁸ See Haiide’s CF-28 Response for entry number 0562.

²⁰⁹ See CBP’s Email, “CBP request for information [#]9190 through [#]05622,” dated September 4, 2024 (Lincody, Alexand, Startown, Haiide follow-up email).

²¹⁰ See Haiide’s CF-28 Response for entry number 0562.

²¹¹ See Haiide Data Memo at Attachment 1.

²¹² See Haiide Data Memo at Attachment 1 and NOI at 16.

²¹³ See Haiide’s CF-28 Response for entry number 0562.

²¹⁴ See CVB Allegations at Exhibit 7.

²¹⁵ See the *Vietnam Order*.

²¹⁶ See Lincody’s CF-28 Response for entry 8513.

²¹⁷ Type 03 entries are those entered for consumption with AD/CVD duties owed.

²¹⁸ See Lincody’s CF-28 Response for entry 8513.

²¹⁹ See CBP’s Email, “CBP request for information [#]9190 through [#]0562,” dated September 4, 2024. This email was sent to Alexand, Haiide, Lincody, and Startown requesting missing information for entry numbers 9190, 3838, 8952, 9969, 8513, 0562.

Further, CBP personnel visited Supplier X's facility and were told by company officials that Supplier X has never manufactured mattresses at its current location,²²⁰ and photographs of the old factory location show that there are [description], which indicates that the factory burned down and was never rebuilt after the fire.²²¹ The Allegations also show there was a fire at this company's previous location in February 2023,²²² before the date of export and the entry date on the 7501 for this entry.²²³ Therefore, Supplier X could not have produced the merchandise for this entry. There is also an incentive to evade the *China Orders* by transshipment through Indonesia because the *Indonesia Order* has a duty rate of only 2.2 %, while the *China AD Order* has a duty rates of up to 1,731.75%.²²⁴ Therefore, the lack of any production records or factory photographs in the CF-28 response, combined with ample record evidence that the factory burned to the ground more than a year before the merchandise was exported, supports a reasonable suspicion of evasion.

9. Lirachy

Lirachy provided a commercial invoice, PL, and BOL, stating that the merchandise in entry 6925 was [descriptor and items] not covered by the *Orders*. The BOL and 7501 stated that the merchandise in this entry was supplied by Supplier D,²²⁵ a supplier found in EAPA Cons. 7856 to have no production capacity in Korea.²²⁶ Even though CBP did not request it, Lirachy also provided a POA with its customs broker signed by its CEO, [name]. Lirachy did not provide any of the production documents such as manufacturer timecards and raw materials purchase documents that CBP requested, even after CBP provided Lirachy a second opportunity to provide this information on September 4, 2024.²²⁷ Since Lirachy provided no information about the facilities, personnel, or production abilities of the supplier, this supports a reasonable suspicion of evasion.

10. Newland

On August 27, 2024, Newland provided a PL, invoice, 7501, and BOL all stating that [company name] manufactured the mattresses for entry 6447 in [location]. Newland also furnished a [descriptor] COOC for [#] mattresses.²²⁸ Notably, the COOC was issued by the [descriptor] Chamber of Commerce rather than a government agency.²²⁹ CBP has observed

²²⁰ See Indonesia Site Visit Memo at 1-2.

²²¹ See Indonesia Site Visit Memo at Attachment 2.

²²² See Allegation number 8047 and 8049 at Exhibit 9.

²²³ See Lincody's CF-28 Response for entry 8513. Specifically, the date of export was [date] according to the 7501, long after the date of the fire.

²²⁴ See the *Orders*.

²²⁵ See Lirachy's CF-28 Response for entry 6925.

²²⁶ See EAPA 7856 Determination Notice at 20.

²²⁷ See Lirachy's CF-28 Response for entry 6925. See also CBP's Email, "CBP request for information for entries [#]4217, through [#]6925," dated September 4, 2024. CBP sent this email to Anlowo, Deluxe Home, and Lirachy and requested missing information in entry numbers 4217, 2289, 4879, 2575, 8934, and 6925.

²²⁸ See Newland's CF-28 Response for entry number 6447 (Newland CF28 Response).

²²⁹ *Id.*

fraudulent COOCs issued by chambers of commerce in past EAPA investigations.²³⁰ These documents confirmed that Newland declared this entry as [descriptor]-origin, but also declared the entry as type 01, not subject to AD/CVD duties.²³¹ Notably, mattresses from [location] are subject to AD duties.²³² Therefore, the fact that Newland declared this entry as not subject to AD/CVD duties, while also stating in its entry documentation that the mattresses were [descriptor]-origin mattresses, would constitute evasion even if these mattresses were actually produced in [location]. However, Newland provided none of the requested production documents, so the information in its CF-28 response does not support the claim that these mattresses were [descriptor] rather than Chinese- or Vietnamese-origin and the AD rates on [descriptor] mattresses are lower than the AD rates of 142.92% to 668.38% on Vietnamese mattresses or the 57.03% to 1,731.75% AD rates on mattresses from China.²³³ Newland also submitted a copy of the POA with its customs broker, including a copy of the passport of Newland's CEO instead of the factory photographs and other production records that CBP requested. These documents indicate that the CEO is [name], a Chinese national.²³⁴

Newland did not furnish a response to the CF-28s requesting information about entry numbers 5145, 1482, and 6978,²³⁵ even after CBP emailed Newland a second time with a copy of the CF-28s on September 13, 2024.²³⁶ Instead, Newland's customs broker provided CBP an email on September 14, 2024, stating: "We regret to inform you that Newland Technology Inc., the company I represent, has ceased operations due to a combination of factors, with the primary reason being the challenging market conditions. The company is now in the process of closure, and the cancellation of the business entity has already been completed."²³⁷ This fits a pattern identified in the Allegations where Foshan Aiyi and its affiliates create U.S. companies to import mattresses from countries subject to orders on mattresses, then shut down the U.S. importers after the U.S. government begins to scrutinize the importers' activities.²³⁸ Like several importers in EAPA 7856,²³⁹ Newland appears to list a Flushing, NY mailing address on its articles of incorporation, even though it is incorporated in California.²⁴⁰

11. Outlier

²³⁰ See EAPA 7699 Determination Notice at 6. See also CBP's Letter, "RE: EAPA CASE 7814 – Notice of Determination as to Evasion," dated June 5, 2024 (EAPA 7814 Determination Notice) at 4 and 5.

²³¹ See Newland's CF-28 Response for entry number 6447.

²³² See *Mattresses from Cambodia, Indonesia, Malaysia, Serbia, Thailand, the Republic of Turkey, and the Socialist Republic of Vietnam: Antidumping Duty Orders and Amended Final Affirmative Antidumping Determination for Cambodia*, 86 Fed. Reg. 26460 (U.S. Department of Commerce, May 14, 2021).

²³³ See the *Orders*.

²³⁴ See Newland's CF-28 Response for entry 6447.

²³⁵ See CF-28s for entry numbers 5145, 1482, and 6978.

²³⁶ See CBP's Email, "[#]5145 – NEWLAND TECHNOLOGY INC.," dated September 13, 2024, CBP's Email "[#]1482 & [#]6978-NEWLAND TECHNOLOGY INC.," dated September 13, 2024, and 5764 through 1292 Email.

²³⁷ See Newland's Email, "Copy of Form 28 for [#]5145," dated September 14, 2024. CBP's Memorandum, "Adding Newland Broker Emails to the Record," dated September 25, 2024, at Attachment 1.

²³⁸ See Zinus Allegations at 5-6.

²³⁹ See EAPA 7856 NOI.

²⁴⁰ See CVB China Allegations at Schedule 4, page 44.

On August 7, 2024, Outlier provided a response for entry number 9818, one of the two entries for which CBP requested information, along with entry 0605.²⁴¹ The information provided included a 7501 which declared the merchandise as [items]. The BOL, PL, and invoice described the merchandise as “[items]” and Outlier provided photographs showing [item].²⁴² This information indicates that the entry contained a [item] outside the scope of the *Orders*.²⁴³

On August 30, 2024, Outlier provided a response for entry number 0605.²⁴⁴ According to Outlier’s response, the merchandise in this entry was declared as mattresses from [location] produced by Supplier 3.²⁴⁵ Outlier did not provide manufacturer timecards for production of this entry, and the raw material purchase documents it provided only included POs for the sourcing of a [item] and an [item].²⁴⁶ These materials were not listed in the production process flow chart the company provided, which only shows four production steps: [processes].²⁴⁷ The supplier-specific trade data described above also showed that Supplier 3 imports [descriptor] mattresses into [location]²⁴⁸ [business activity] to the United States,²⁴⁹ which is evidence of transshipment and duty evasion.

12. Startown

For entry numbers 9969 and 8952, Startown provided 7501s, commercial invoices, PLs, and BOLs on August 29, 2024.²⁵⁰ These documents described the merchandise as [descriptor and items], which would be covered by the *Orders* if made in China, Vietnam, or Indonesia.²⁵¹ Startown’s documents claimed that Supplier 3 and Supplier 7 supplied the mattresses in entry numbers 9969 and 8952, respectively.²⁵² Startown also provided a copy of its broker POA agreement, which CBP did not request, but did not provide any production documents for either entry.²⁵³ CBP afforded Startown a second opportunity to furnish the missing information on September 4, 2024, but Startown did not respond.²⁵⁴ Notably, supplier-specific trade data explained above indicates that both these suppliers received mattresses from [location]²⁵⁵ in greater quantities than their exports to the United States and are, therefore, likely not

²⁴¹ See Outlier’s CF-28 Response for entry 9818.

²⁴² *Id.*

²⁴³ *Id.*

²⁴⁴ See Outlier’s CF-28 Response for entry number 0605.

²⁴⁵ *Id.*

²⁴⁶ *Id.*

²⁴⁷ *Id.*

²⁴⁸ See Supplier Trade Data Memo at Attachment 1.

²⁴⁹ *Id.* at Attachment 2.

²⁵⁰ See Startown’s CF-28 Response for entry numbers 9969 and 8952

²⁵¹ *Id.* See also the *Orders*.

²⁵² *Id.*

²⁵³ See Startown’s CF-28 Response for entry numbers 9969 and 8952.

²⁵⁴ See CBP’s Email, “CBP request for information [#]9190 through [#]0562,” dated September 4, 2024. This email was sent to Alexand, Haiide, Lincody, and Startown requesting missing information for entry numbers 9190, 3838, 8952, 9969, 8513, 0562.

²⁵⁵ See Supplier Trade Data Memo at Attachment 1.

genuine manufacturers.²⁵⁶ Since Startown provided none of the requested production documents, the trade data and CF-28s support the conclusion that the mattresses it imported from [location] were Chinese-origin.²⁵⁷

13. Vovyace

On August 29, 2024, Vovyace submitted a 7501, invoice, and BOL for entry number 1292 indicating that this entry contained [descriptor and item] mattresses supplied by Supplier F.²⁵⁸ Vovyace provided no written narrative responses or production documents, even after CBP issued Vovyace a reminder to provide the missing information on September 4, 2024.²⁵⁹ CBP already found in EAPA Cons. 7856 that Supplier F is not a genuine mattress manufacturer, but instead, transships Chinese mattresses through Korea to U.S. importers.²⁶⁰ The scant information in Vovyace's CF-28 response does not provide any of the information that CBP requested about Supplier F's production capacity,²⁶¹ and therefore, does not contradict the conclusion CBP reached in EAPA Cons. 7856 that Supplier F transships Chinese-origin mattresses through Korea. Therefore, record evidence supports the conclusion that Vovyace entered the merchandise in this entry through evasion.

14. Weekaly

On September 16, 2024, Weekaly submitted a CF-28 response for the entry ending in 4193.²⁶² However, Weekaly only provided an invoice, PL, 7501, and BOL, but did not furnish most of the requested production documents.²⁶³ The BOL, PL, 7501, and invoice show that Weekaly declared the merchandise in this entry as [descriptor] mattresses supplied by Supplier S and not subject to AD/CVD orders (type 01).²⁶⁴ In EAPA Cons. 7856, CBP found that this supplier supplied mattresses to five Foshan-Aiyi brand name companies,²⁶⁵ and CBP learned that Supplier S has no mattress factory in Korea.²⁶⁶ Zinus also conducted a site visit to Supplier S's address in Korea and found that the address in Korea was an office building that had no manufacturing operations.²⁶⁷

Weekaly did not respond to the CF-28 requesting information about entry number 0462.²⁶⁸ According to CBP systems, Weekaly declared 0462 as an entry of [descriptor] mattresses not

²⁵⁶ *Id.* at Attachment 2.

²⁵⁷ *See* Startown's CF-28 Response for entry numbers 9969 and 8952.

²⁵⁸ *See* Vovyace's CF-28 Response for entry number 1292. The CF-28 for entry number 1292 was not successfully transmitted on July 30, 2024, and was re-transmitted on August 6, 2024. However, the date on the form remained July 30, 2024. The response deadline was September 5, 2024, 30 days after it was successfully transmitted.

²⁵⁹ *See* 5764 through 1292 email.

²⁶⁰ *See* EAPA 7856 Determination Notice.

²⁶¹ *See* Vovyace's CF-28 Response for entry number 1292.

²⁶² *See* Vovyace's CF-28 Response for entry number 4193.

²⁶³ *Id.*

²⁶⁴ *Id.*

²⁶⁵ *See* EAPA 7856 Determination Notice at Table 2 (page 10).

²⁶⁶ *Id.* at 11.

²⁶⁷ *Id.* at 17.

²⁶⁸ *See* CF-28 for entry 0462.

subject to AD/CVD duties.²⁶⁹ However, Weekaly declared [company name] (Supplier Q)²⁷⁰ as the manufacturer, even though this supplier told CBP in a response to a request for information pursuant to EAPA Cons. 7856 that it has no production facilities and transships Chinese mattresses through Korea.²⁷¹ Therefore, the mattresses in this entry would be covered by the *China Orders* if made in China.²⁷²

Weekaly also did not respond to the CF-28 requesting information about entry 9173. According to CBP systems, Weekaly declared the merchandise in this entry as [descriptor] mattresses, not subject to AD/CVD duties.²⁷³ These mattresses would be covered by the scopes of the *Orders* if made in China, Vietnam, or Indonesia.²⁷⁴ CBP systems indicate that Weekaly declared [company name] as the manufacturer.²⁷⁵

15. Wuleitex

On August 6, 2024, Wuleitex submitted its CF-28 response for entry number 8614.²⁷⁶ Wuleitex identified [company name] (Supplier C) as the manufacturer of this entry. On its 7501, Wuleitex declared the merchandise as [descriptor and items],²⁷⁷ which would not be covered by the *Orders* even if made in China, Vietnam, or Indonesia.²⁷⁸ The only raw material purchase documents Wuleitex provided were POs from the manufacturer to its suppliers of packaging materials and [item]. Although, the production process diagram Wuleitex provided indicated that [items] were also inputs to make [items], Wuleitex provided no POs from the manufacturer to any supplier of these inputs.²⁷⁹ CBP requested both a production process diagram and purchase documents for the manufacturer's sourcing of raw materials to compare them and substantiate that the manufacturer purchased all inputs necessary to produce the merchandise.²⁸⁰ Therefore, the absence of purchase documents for all raw materials needed to produce the merchandise means that CBP cannot confirm that Supplier C actually produced the merchandise in this entry or that it was [items] as declared in Wuleitex's 7501.²⁸¹ Additionally, the factory photographs Wuleitex provided show only [description of processing activity] with no evidence of equipment to perform the [process] steps outlined in the production process.²⁸² Wuleitex also provided employee timecards for [#] employees and the timecards did not clarify whether these employees were office staff or production workers.²⁸³

²⁶⁹ See EAPA Receipt Report.

²⁷⁰ See CF-28 for entry 0462. See also EAPA Receipt Report.

²⁷¹ See EAPA 7856 Determination Notice at 9.

²⁷² See CF-28 for entry number 0462. See also EAPA Receipt Report.

²⁷³ See CF-28 for entry 9713 and EAPA Receipt Report.

²⁷⁴ See CF-28 for entry 9713 and EAPA Receipt Report. See also the *Orders*.

²⁷⁵ See CF-28 for entry 9713 and EAPA Receipt Report.

²⁷⁶ See Wuleitex's CF-28 Response for entry 8614.

²⁷⁷ *Id.* See also EAPA Receipt Report.

²⁷⁸ See the *Orders*.

²⁷⁹ See Wuleitex's CF-28 Response for entry 8614.

²⁸⁰ See CF-28 for entry 8614.

²⁸¹ See Wuleitex's CF-28 Response for entry 8614.

²⁸² *Id.*

²⁸³ *Id.*

On August 23, 2024, Wuleitex furnished its CF-28 response for entry number 6423. In its response, Wuleitex stated that its company address is 3654 Main Street, Flushing, NY.²⁸⁴ This is the same address as Kelanch Inc., one of the importers CBP determined in EAPA Cons. 7856 was evading the *China Orders* by transshipment through Korea.²⁸⁵ This connects Wuleitex to the Foshan Aiyi evasion scheme. Wuleitex claimed that the merchandise in this shipment was [items] produced in [location] by [company name] (Supplier B). The exterior photographs of this producer's location appear to be a [location] with no indication (e.g., no sign on the building) that Supplier B is located at this facility or that it is a factory.²⁸⁶ The photographs Wuleitex provided of the interior show machines for [process] but no equipment for any other production steps listed in the production process diagram Wuleitex provided.²⁸⁷ These photographs also do not show [factor of production]. One of the manufacturer's raw material POs Wuleitex submitted for entry 6423 was issued by Supplier C rather than the purported manufacturer of this entry, Supplier B.²⁸⁸ This PO was also for the purchase of [item], which is an input to make [items], but is not listed as an input to make [items], according to the production process diagram Wuleitex provided.²⁸⁹ This suggests that the shipment included mattresses covered by the *Orders*. Wuleitex furnished a second manufacturer PO from Supplier B for a product identified by a product code, but there was no explanation of what these product codes mean, so it was unclear what was ordered in this PO. Wuleitex submitted timecards for [#] employees but there is no indication if these employees were production workers or office staff.²⁹⁰

Wuleitex did not submit responses to the CF-28s requesting information for entry numbers 7498 and 9365.²⁹¹ CBP systems indicated that Wuleitex declared the merchandise in entry 9365 as [descriptor] mattresses not subject to AD/CVD duties.²⁹² These mattresses would be covered by the *Orders* if made in a country covered by one of the *Orders*.²⁹³ Wuleitex declared the merchandise in entry 7948 as [items], and this merchandise, as described, would not be covered by the *Orders*, even if made in China, Vietnam, or Indonesia.²⁹⁴ According to CBP systems, Wuleitex declared the manufacturer of entry 7948 as Supplier B, and the country of origin as [location]. Without any of the requested information, CBP cannot confirm that the merchandise in entry 7948 was [items], rather than mattresses covered by the *Orders*, or that it was produced by Supplier B in [location] rather than in Indonesia, Vietnam, or China.²⁹⁵

²⁸⁴ See Wuleitex's CF-28 Response for 6423.

²⁸⁵ See EAPA 7856 Determination Notice at 1.

²⁸⁶ See Wuleitex's CF-28 Response for 6423.

²⁸⁷ *Id.*

²⁸⁸ *Id.*

²⁸⁹ *Id.*

²⁹⁰ *Id.*

²⁹¹ See CF-28s for entry numbers 9365 and 7498.

²⁹² See CF-28 for entry 9365 and EAPA Receipt Report.

²⁹³ *Id.*

²⁹⁴ See EAPA Receipt Report and CF-28 for entry number 7498. See also the *Orders*.

²⁹⁵ See CF-28 for entry 7498 and EAPA Receipt Report.

Importers Who Did Not Submit Any Response

Calimoon, Day Day Up, Hondex, Incoroy, Inland Empire, Splendid Life, Sunshine Intl, and Zozonid did not respond to their respective CF-28s. The very fact that these Importers did not respond supports the conclusion that these importers evaded the *Orders* because the CF-28 form states that importers are required by law to furnish the requested information.²⁹⁶ CBP also afforded each of these Importers a second opportunity to submit a response on September 12 and 13, 2024 (after the response deadline had passed), and informed the importers that a response was required within five business days.²⁹⁷ However, these importers did not provide any of the requested information.

According to entry summary information, Day Day Up declared [company name] (Supplier 4) as the supplier for entry 0518 and declared the merchandise in this entry as [descriptor]-origin [items] not subject to AD/CVD duties.²⁹⁸ [items] are not covered by the *Orders*.²⁹⁹ Day Day Up also declared the merchandise in entry 5367 as [descriptor]-origin [items] supplied by [company name] (Supplier 2).³⁰⁰ According to the entry summary information, Day Day Up declared this entry as type 01.³⁰¹ [items] are outside the scope of the *Orders*.³⁰²

However, Day Day Up's non-response to the CF-28s contributed to reasonable suspicion of evasion prior to NOI. Further, CVB provided a BOL in the Allegations showing that Day Day Up has received mattress shipments from Supplier D in [location],³⁰³ which according to EAPA Cons. 7856 does not have mattress production in [location].³⁰⁴ According to the Allegations, Supplier D has also supplied mattresses to Deluxe Home, Lirachy, and Zozonid.³⁰⁵ Entry summary information confirms that these Importers have all received mattress shipments from Supplier D,³⁰⁶ and that Supplier D also supplied mattresses to Kakaivy Inc. (Kakaivy), an importer found to be evading by transshipment through Korea in EAPA Cons. 7856.³⁰⁷

Information in CBP systems, when combined with the information from EAPA Cons. 7856, trade data, and information from the Allegations described above amounts to reasonable suspicion that

²⁹⁶ See CF-28's for entry numbers 1469, 5973, 2596, 5367, 0518, 9682, 6170, and 0871.

²⁹⁷ See CBP's Email to Calimoon and Alloech, "CBP Form 28 Follow Up," dated September 12, 2024; CBP's Email to Day Day Up, "[#]0518 & [#]5367 – DAY DAY UP INC," dated September 13, 2024; CBP's Email to Hondex, "[#]2596 – HONDEX INC," dated September 13, 2024; CBP's Email to Incoroy, "[#]9682 – INCOROY INC," dated September 13, 2024; CBP's Email to Inland Empire, "[#]6170 – INLAND EMPIRE DECOR FURNISHING INC," dated September 13, 2024; CBP's Email to Zozonid, "[#]0871 – ZOZONID INC," dated September 13, 2024.

²⁹⁸ See CF-28 for entry number 0518 and EAPA Receipt Report.

²⁹⁹ See the *Orders*.

³⁰⁰ See EAPA receipt Report and CF-28 for entry number 5367.

³⁰¹ See CF-28 for entry number 5367.

³⁰² See the *Orders*.

³⁰³ See the CVB China Allegations at Schedule 4 and the CVB Vietnam Allegations at Schedule 3.

³⁰⁴ See EAPA 7856 Determination Notice at 7.

³⁰⁵ See the CVB China Allegations at Schedule 4.

³⁰⁶ See Lirachy's CF-28 Response for entry 6925, Deluxe Home's 2575 Supp CF28 Response, CF-28 for 0871, and EAPA Receipt Report.

³⁰⁷ See EAPA 7856 Determination Notice at 7.

the other seven Importers who did not submit CF-28 responses (Calimoon, Hondex, Incoroy, Inland Empire, Splendid Life, Sunshine Intl, and Zozonid) also entered mattresses into the customs territory of the United States through evasion. According to entry summary information, the merchandise in each of these entries consisted of mattresses covered by the *Orders* if made in China, Vietnam, or Indonesia.³⁰⁸ In addition, CBP systems indicate that these entries were all declared as type 01 not subject to AD/CVD duties upon entry.³⁰⁹

Further, the suppliers of these entries are suspicious because they have also supplied mattresses to other Importers in this investigation and most have supplied mattresses to importers found to evading in EAPA Cons. 7856. Specifically:

- Calimoon declared Supplier G for entry numbers 1469 and 5973,³¹⁰
- Hondex declared Supplier S for entry 2596,³¹¹
- Incoroy declared Supplier H for entry 9682,³¹²
- Inland Empire declared Supplier Z for entry 6170,³¹³
- Splendid Life declared [company name] (Supplier O) for entry 8193 and Supplier L as the supplier for entry 4648,³¹⁴
- Sunshine Intl declared Supplier 5 for entry 3156 and Supplier 8 as the supplier for entry 7046,³¹⁵ and
- Zozonid declared Supplier D for entry 0871.³¹⁶

Each of these suppliers, except for Supplier O, also supplied mattresses to other Importers in this investigation.³¹⁷ Additionally, CBP already concluded from its research in EAPA Cons. 7856 that Supplier O, Supplier S, Supplier H, and Supplier D have no mattress production capacity.³¹⁸ In that investigation, CBP determined that “{r}ecord evidence exists that the South Korean Suppliers are not legitimate.”³¹⁹ In the Allegations, Zinus also provided images of Supplier Z’s address showing that it is not a factory.³²⁰ As explained above, the supplier-specific trade data indicates that Supplier G imports [descriptor and items] into [location] in [description] to the United States, which is an indication that it is engaged in transshipment and is not a legitimate manufacturer.³²¹

Interim Measures

³⁰⁸ See EAPA Receipt Report and the *Orders*.

³⁰⁹ See EAPA Receipt Report.

³¹⁰ See CF-28s for entry numbers 1469 and 5973. See also EAPA Receipt Report.

³¹¹ See CF-28 for entry number 2596 and EAPA Receipt Report.

³¹² See CF-28 for entry number 9682 and EAPA Receipt Report.

³¹³ See CF-28 for entry number 6170 and EAPA Receipt Report.

³¹⁴ See CF-28 for entry numbers 8193 and 4648.

³¹⁵ See CF-28 for entry numbers 3156 and 7046 and EAPA Receipt Report.

³¹⁶ See CF-28 for entry number 0871 and EAPA Receipt Report.

³¹⁷ See EAPA Receipt Report.

³¹⁸ See Vovace’s CF-28 Response for entry number 4193.

³¹⁹ *Id.* at 4 and 7.

³²⁰ See Zinus Allegations at 25.

³²¹ See Supplier Trade Data Memo at Attachments 1 and 2.

Not later than 90 calendar days after initiating an investigation under EAPA, TRLED will decide based on the record of the investigation if there is reasonable suspicion that merchandise covered by the AD/CVD orders was entered into the United States through evasion.³²² CBP need only have sufficient evidence to support a reasonable suspicion that the importer alleged to be evading entered merchandise covered by an AD or CVD order into the United States by a materially false statement or act, or material omission that resulted in the reduction or avoidance of applicable AD or CVD cash deposits or other security.³²³

If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24. As explained in the NOI, for each of the 23 Importers covered by this investigation, CBP imposed interim measures because the evidence established reasonable suspicion that the Importers entered Chinese-origin mattresses into the United States through evasion.³²⁴

Enactment of Interim Measures

Based on the record evidence referenced above, CBP found that there was reasonable suspicion that the Importers entered covered merchandise into the United States through evasion by importing Chinese, Vietnamese, and/or Indonesian-origin mattresses transshipped through multiple Third Countries while falsely declaring the Third Countries as the country of origin, and in some cases also misclassifying the merchandise as [items] or [items], while failing to declare that the entries were subject to AD/CVD. Therefore, CBP imposed interim measures on the Importers' imports of mattresses into the United States.³²⁵ Specifically, in accordance with 19 U.S.C. § 1517(e)(1)-(3), CBP:

- (1) suspended the liquidation of each unliquidated entry of such covered merchandise that entered on or after July 25, 2024, the date of initiation of the investigation;
- (2) pursuant to the Commissioner's authority under 19 U.S.C. § 1504(b), extended the period for liquidating each unliquidated entry of such covered merchandise that entered before the date of the initiation of the investigation, July 25, 2024; and
- (3) pursuant to the Commissioner's authority under 19 U.S.C. § 1623, took such additional measures as the Commissioner determines necessary to protect the revenue of the United States, including requiring a single transaction bond or additional security or the posting of a cash deposit with respect to such covered merchandise.³²⁶

In addition, CBP required live entry and rejected any non-compliant entry summaries, as well as required a refiling of entries that were within the entry summary rejection period. CBP indicated it will also evaluate the Importers' continuous bonds to determine their sufficiency. Finally, CBP indicated it may pursue additional enforcement actions, as provided by law, consistent with 19 U.S.C. § 1517(h).

³²² See 19 U.S.C. § 1517(e).

³²³ See 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24.

³²⁴ See 19 C.F.R. § 165.24(a), and NOI at 35-44.

³²⁵ See, e.g., NOI at 44-45. See also 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24(a).

³²⁶ See, e.g., at 44-45. See also 19 C.F.R. § 165.24(b)(1)(i-iii).

Post-Interim Measures

Requests for Information (Importers)

On November 4, 2024, CBP issued a request for information (RFI) by email to each of the 23 Importers subject to the investigation.³²⁷ With the exception of Outlier, which is discussed below, none of the Importers submitted a response to its RFI.³²⁸ Notably, all of the importers except for Calimoon, Day Day Up, Hondex, Incoroy, Inland Empire, Splendid Life, Sunshine Intl, and Zozonid submitted CF-28 responses, and CBP sent the importer RFIs to the same email addresses we sent the CF-28s to, which proves that the RFIs were sent to valid email addresses for these companies.³²⁹ CBP also emailed the RFIs to the contact addresses in CBP systems for each of the Importers, including those that did not provide CF-28 responses.³³⁰

³²⁷ See CBP's Email and Letter to Alexand Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Alloech Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Anlowo Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Bentensh Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Calimoon Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Day Day Up Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Deluxe Home of USA Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Gemmeo Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Haiide Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Hondex Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Incoroy Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Inland Empire Décor Home Furnishing Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Lincody Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Lirachy Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Newland Technology Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Outlier Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Splendid Life Distribute Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Startown Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Sunshine International Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Vovyace Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Weekaly Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; CBP's Email and Letter to Wuleitex Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024; and CBP's Email and Letter to Zozonid Inc., "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024. (We refer to these emails and letters collectively, as the Importer RFIs).

Note that the email sent to the email address identified for Wuleitex was rejected as undeliverable, but with a message identifying a different contact email. CBP then issued a new email, with the Wuleitex RFI, on November 4, 2024. See CBP's Email to import@threefortusa.com, dated November 4, 2024.

³²⁸ See generally, Importer RFIs.

³²⁹ See generally, CF-28s and the Importer RFIs.

³³⁰ See Importer RFIs.

On November 19, 2024, CBP provided 22 Importers other than Outlier a second opportunity to respond to the RFIs,³³¹ but none of those importers submitted an RFI response. CBP then made efforts to provide the 22 Importers other than Outlier their RFIs via FedEx. CBP summarized those efforts in a memorandum dated February 21, 2025.³³² In the end, none of the 22 Importers submitted RFI responses except for Outlier, but even Outlier never resubmitted its RFI response after CBP rejected it, as explained below.³³³

In response to its RFI dated November 4, 2024, Outlier requested an extension to the deadline for its RFI response, and CBP extended the deadline from November 18, 2024, to November 27, 2024.³³⁴ Outlier submitted an RFI response on November 26, 2024, but CBP rejected that response due to the absence of bracketing, redaction, and public summaries, and moreover, it contained very little of the information requested in the RFI.³³⁵ CBP informed Outlier that it was being given until December 13, 2024, to submit a revised RFI response to address the deficiencies associated with its initial response.³³⁶ Outlier submitted an RFI response on December 12, 2024, but this version was almost identical to the prior one, and contained only a small portion of the information requested in the RFI. Accordingly, CBP rejected this second Outlier RFI response on December 20, 2024, establishing a deadline of December 27, 2024 for Outlier to resubmit its response.³³⁷ However, Outlier never resubmitted its response.

Requests for Information (Suppliers)

CBP attempted to serve RFIs on 32 suppliers associated with the Importers. Given the failure of the Importers to respond to their own RFIs, which included questions regarding contact information for their suppliers, CBP's efforts to transmit RFIs to the suppliers was significantly hindered, with CBP having to rely on email and address information it was able to identify from its systems and from public sources.³³⁸

CBP twice emailed ten of the suppliers their RFIs by email.³³⁹ We also attempted to FedEx the RFIs to the aforementioned suppliers on December 6, 2024, with successful delivery made to the

³³¹ See CBP's Email addressed to the Importers, apart from Outlier Inc., "EAPA 7913 (consolidated) - additional opportunity to submit RFI response," dated November 19, 2024.

³³² See CBP's Memorandum, "FedEx Delivery Attempts of Request for Information for Importers; EAPA Consolidated Case Number 7913," dated February 21, 2025 (Importer FedEx Delivery Memo).

³³³ See CBP's Email, "Rejection of the RFI response of Outlier Inc.," dated December 5, 2024. See also CBP's Email, "Rejection of the RFI response of Outlier Inc. that was submitted December 12, 2024," dated December 20, 2024.

³³⁴ See CBP's Email, "Extension of Deadline for RFI response by Importer Outlier Inc.," dated November 14, 2024.

³³⁵ See CBP's Email, "Rejection of the RFI response of Outlier Inc.," dated December 5, 2024. See also 19 C.F.R. § 165.4(a), 19 C.F.R. § 165.4(b), and 19 C.F.R. § 165.5(b).

³³⁶ *Id.*

³³⁷ See CBP's Email, "Rejection of the RFI response of Outlier Inc. that was submitted December 12, 2024," dated December 20, 2024.

³³⁸ See Importer RFIs and Importer FedEx Delivery Memo.

³³⁹ See CBP's Emails and RFIs dated November 8, 2024, and November 23, 2024, for Supplier 8, Supplier X, Supplier B, Supplier 1, Supplier Q, Supplier M, Supplier 13, Supplier 2, Supplier L, and Supplier 6. The identities of all the suppliers were considered business confidential information, so CBP assigned each of them numbers or letters to represent their identities. See, e.g., Addendum to the NOI. Note that CBP sent RFIs to more suppliers than those listed in that Addendum to the NOI. See also the addendum to this notice "Addendum: Supplier Names and Abbreviations", which includes the suppliers not listed in the NOI addendum.

addresses identified for Supplier 8, Supplier X, Supplier 1, Supplier Q, [company name] (Supplier M), Supplier 13, and Supplier 6.³⁴⁰ Of all of these suppliers, only Supplier 8 and Supplier 1 submitted RFI responses, which are discussed further below. We tried to FedEx the RFI to Supplier 2 a second time, given the first failed delivery appeared to have been due to an error by FedEx, but the RFI continued to be undeliverable.³⁴¹

The remaining 22 suppliers were sent their RFIs by FedEx on November 12, 2024 (Supplier J, Supplier C, Supplier Z, Supplier 3, Supplier E, Supplier G, Supplier H, Supplier 11, Supplier 4, Supplier D, Supplier 5, Supplier O, Supplier P, Supplier U, Supplier S, Supplier I, Supplier 12, Supplier 9, Supplier 7, Supplier R, Supplier F, and Supplier 10). Successful delivery to the identified addresses were made for the following suppliers: Supplier C, Supplier 3, Supplier E, Supplier G, Supplier 11, Supplier 5, Supplier S, Supplier I, Supplier 12, and Supplier R.³⁴² None of this subset of suppliers submitted an RFI response, and CBP sent them RFIs by FedEx a second time (the third opportunity for these suppliers to respond) on November 29, 2024, and FedEx successfully delivered the RFIs to all except Supplier C and Supplier 3.³⁴³ However, none of these suppliers submitted RFI responses, even after FedEx confirmed delivery twice. In addition, CBP made another attempt to deliver an RFI to Supplier J by FedEx, but the package was undeliverable.³⁴⁴

In the supplier RFIs, CBP requested *inter alia*, information about each supplier's capacity to produce mattresses, their suppliers (if any) of raw materials, their purchases (if any) of mattresses, mattress inventory records, sales documents, and a list of all U.S. customers.³⁴⁵

³⁴⁰ See CBP's Memorandum, "Results of attempted FedEx to 10 suppliers," dated December 27, 2024.

³⁴¹ See CBP's Memorandum, "Result of FedEx resend of Supp 2 RFI," dated January 3, 2025.

³⁴² See CBP's Memorandum, "Results of attempted FedEx transmission of 22 supplier RFIs," dated November 21, 2024.

³⁴³ See CBP's Memorandum, "Results of attempted FedEx transmission of 10 supplier RFIs," dated December 13, 2024.

³⁴⁴ See CBP's Memorandum, "Results of 2nd FedEx transmission of RFI to Supplier J," dated December 2, 2024.

³⁴⁵ See CBP's letter to Supplier 1, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 8, 2024; CBP's letter to Supplier 2, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 8, 2024; CBP's letter to Supplier 3, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier 4, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier 5, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier 6, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 8, 2024; CBP's letter to Supplier 7, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier 8, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 8, 2024; CBP's letter to Supplier 9, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier 10, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier 11, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 8, 2024; CBP's letter to Supplier 12, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier 13, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 8, 2024; CBP's letter to Supplier B, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 8, 2024; CBP's letter to Supplier C, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier D, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier E, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier F, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier G, "RE: EAPA Cons. Case

Supplier 8

As noted above, on November 8, 2024, CBP sent a request for information (RFI) to Supplier 8 by email, and the deadline for response was November 22, 2024.³⁴⁶ After receiving no reply by the deadline, CBP subsequently emailed Supplier 8 on November 23, 2024, providing a new deadline for Supplier 8's RFI response.³⁴⁷ Receiving no response, CBP issued the RFI to Supplier 8 by FedEx on December 6, 2024, and gave Supplier 8 a deadline of December 20, 2024 to submit its response.³⁴⁸ On December 19, 2024, Supplier 8 submitted its RFI response. On January 8, 2025, CBP rejected Supplier 8's RFI response in part because the business confidential version did not conform to CBP's filing requirements, and CBP provided Supplier 8 until January 18, 2025, to correct its response.³⁴⁹ On January 9, 2025, Supplier 8 submitted its RFI response.³⁵⁰

Supplier 8 states that it is located in Korea.³⁵¹ In response to the request that it "provide a list for the production facilities, sales office locations, research and development facilities and administrative offices involved in the development, production, sale and/or distribution of the covered merchandise operated by your company and its affiliates," and that it "briefly describe the purpose of each," Supplier 8 responded that its "factory has 2 sewing machines, 2 forklifts, 1 conveyor belt, and 1 line for compression packaging and rolling for mattress production."³⁵² This does not support a contention that the company is manufacturing mattresses, as a "sewing machine" clearly is not sufficient for manufacturing a mattress. When asked to "provide a list all significant inputs used to produce the covered merchandise, including any semi-finished form of the covered merchandise, specific types of raw materials, labor, energy, subcontractor services,

Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier H, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier I, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier J, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 21, 2024; CBP's letter to Supplier L, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 8, 2024; CBP's letter to Supplier M, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 8, 2024; CBP's letter to Supplier O, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier P, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Q, RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 8, 2024; CBP's letter to Supplier R, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier S, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier U, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024; CBP's letter to Supplier X, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 8, 2024; and CBP's letter to Supplier Z, "RE: EAPA Cons. Case Number 7913 – Request for Information," dated November 12, 2024 (we refer to these collectively as "the Supplier RFIs"). *See also* Addendum: Supplier Names and Abbreviations.

³⁴⁶ *See, e.g.*, CBP's Email transmitting RFI to Supplier 8, dated November 8, 2024.

³⁴⁷ *See* CBP's Email, "EAPA 7913 (cons.): second chance to respond to RFI [company name] (Supplier 8)," dated November 23, 2024.

³⁴⁸ *See* CBP's Letter, "EAPA Cons. Case Number 7913 - Request for Information," dated December 6, 2024. *See also* CBP's Memorandum, "EAPA Case No. 7913 Cons. – Transmission of 10 Supplier RFIs by FedEx," dated December 6, 2024, and CBP's Memorandum, "Summary of Results of Attempted Transmission of RFIs to 10 suppliers," dated December 27, 2024.

³⁴⁹ *See* CBP's Email, "Rejection of Supplier 8 RFI Response," dated January 8, 2025.

³⁵⁰ *See* Supplier 8's Letter, "RE: EAPA CONS. CASE 7913 - Request for Information," dated January 9, 2025.

³⁵¹ *See* Supplier 8 RFI Response at 1.

³⁵² *Id.* at 3.

research and development, *etc.*,” Supplier 8 responded that “{t}he materials include mattress covers, foam, springs, zippers, compression plastic, rolling plastic, desiccants, finished product boxes, catalogs, box adhesive, box tape, *etc.*.”³⁵³ There is no indication from these materials, in conjunction with only “sewing machine” equipment, that Supplier 8 is actually manufacturing mattresses, as opposed to at most assembling and packaging the already-produced mattress components. Furthermore, Sunshine Intl, and Deluxe Home both declared Supplier 8 as the manufacturer of thousands of mattresses in a single year,³⁵⁴ which would be practically impossible to produce with only two sewing machines. Supplier 8’s responses were also inconsistent and unreliable because it stated that it exports its merchandise to the United States, but also stated repeatedly that it does not sell to the United States, but rather to another firm that sells to U.S. customers.³⁵⁵ Nothing in Supplier 8’s response confirms that the merchandise it sold to its customer was imported into the United States by any of the Importers subject to this investigation.

On January 10, 2025, CBP sent Supplier 8 a supplemental request for information (SRFI) with a deadline of January 17, 2025, to submit its response.³⁵⁶ Supplier 8 requested an extension to this deadline on January 15, 2025, and on that date, CBP extended the deadline for Supplier 8 to submit its SRFI response until January 22, 2025.³⁵⁷ On January 21, 2025, Supplier 8 submitted its SRFI response, but due to deficiencies in that response, on January 22, 2025, CBP rejected Supplier 8’s SRFI response and established a deadline of January 29, 2025 for Supplier 8 to resubmit its response.³⁵⁸ Supplier 8 resubmitted its SRFI response on January 23, 2025. On February 4, 2025, CBP rejected this response because the version of the resubmitted response labeled “public version” contained business confidential information enclosed in brackets. CBP established a deadline of February 11, 2025, for Supplier 8 to resubmit its response.³⁵⁹ However, CBP received no response resubmission from Supplier 8.

Supplier 1

Supplier 1 (which as noted above is the term used in this investigation to represent [company name], which refers to itself as “[company name]”), submitted its RFI response on January 10, 2025.³⁶⁰ Supplier 1 stated that “{d}uring the POI,” it “produced all the covered merchandise it sold to the United States.”³⁶¹ Supplier 1 also stated “it has not supplied any mattresses to any of the alleged parties in this investigation.”³⁶²

³⁵³ *Id.* at 13.

³⁵⁴ See EAPA Receipt Report.

³⁵⁵ See Supplier 8 RFI Response at 5, 9, 15, and 16.

³⁵⁶ See CBP’s Letter, “RE: EAPA Cons. 7913 – Supplemental Request for Information,” dated January 10, 2025 (Supplier 8 SRFI).

³⁵⁷ See CBP’s Email, “RE: EAPA Cons. 7913 – Supplier 8 Supplemental Request for Information,” dated January 15, 2025.

³⁵⁸ See CBP’s Email, “RE: EAPA Cons. 7913 – Supplier 8 Supplemental Request for Information,” dated January 22, 2025.

³⁵⁹ See CBP’s Email, “EAPA Cons. 7913 – Rejection of Supplier 8 RFI Response,” dated February 4, 2025.

³⁶⁰ See “Response to Request for Information – Supplier One,” dated January 10, 2025 (Supplier 1 RFI response).

³⁶¹ *Id.* at 2.

³⁶² *Id.* at 1.

the facts otherwise available to make a final determination as to evasion pursuant to 19 U.S.C. § 1517(c)(1)(A) and 19 C.F.R. § 165.27. Moreover, an adverse inference may be used with respect to U.S. importers, foreign producers, and manufacturers “without regard to whether another person involved in the same transaction or transactions under examination has provided the information sought....” *See* 19 U.S.C. § 1517(c)(3)(B).

Despite having been given multiple opportunities to submit an RFI response, 22 of the Importers did not.³⁷¹ As noted above, the only importer that did, Outlier, failed to submit an RFI response that complied with regulatory requirements, and Outlier’s response was rejected and removed from the administrative record of this investigation. After CBP afforded Outlier an additional opportunity to resubmit its response, Outlier did not do.³⁷² CBP did not consider this response when making its determination as to evasion, in accordance with 19 § C.F.R. 165.4(b)(3).³⁷³ Consequently, CBP’s ability to obtain information for its investigation was impeded significantly by the 23 Importers failure to cooperate to the best of their ability. This included CBP’s inability to obtain information about the Importers’ sources of their mattresses to confirm the Importers’ claimed country of origin. This made it difficult for CBP to find contact information (*e.g.*, email addresses and mailing addresses) for the claimed foreign suppliers. Therefore, CBP had to rely on contact information from its own systems and publicly available information to try to send RFIs to the foreign suppliers. As most foreign suppliers never confirmed receiving RFIs, and several were undeliverable by FedEx, CBP was not able to contact all suppliers due to the Importers’ non-cooperation. Even when CBP successfully sent RFIs to the foreign suppliers and the foreign suppliers confirmed receipt, or delivery was confirmed by FedEx, CBP was unable to obtain information needed for this investigation. The information missing from the record due to the Importers’ non-cooperation included:

- the type of merchandise the Importers imported,
- how the importer found its suppliers, the identity of the actual producers (rather than the suppliers identified in CBP systems), and
- the importers’ affiliations and corporate ownership.³⁷⁴

Additionally, to the extent that the Importers’ failure to respond to the RFIs resulted in CBP being unable to send RFIs to the suppliers, the Importers’ non-responses prevented CBP from obtaining information about the suppliers’ production capacity, production process source of raw materials, and other information that would allow CBP to confirm the country of origin.³⁷⁵

EAPA’s regulations at 19 C.F.R. § 165.6(a) state that if “the importer, or the foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with a RFI made by CBP, CBP may apply an inference adverse to the interests of that party in selecting from among the facts otherwise available to make the determination as to evasion....”³⁷⁶

³⁷¹ *See* Importer RFIs and Importer FedEx Delivery Memo.

³⁷² *See* CBP’s Email, “Rejection of the RFI response of Outlier Inc. that was submitted December 12, 2024,” dated December 20, 2024. *See also* 19 C.F.R. § 165.4(a), 19 C.F.R. § 165.4(b), and 19 C.F.R. § 165.5(b).

³⁷³ *See* 19 § C.F.R. 165.4(b)(3).

³⁷⁴ *See* the Importer RFIs.

³⁷⁵ *See* Supplier RFIs.

³⁷⁶ *See also* 19 USC 1517(c)(3)(A).

Because the 23 Importers subject to this investigation either failed to submit an adequate, or any, RFI response, CBP finds that those Importers have not cooperated and complied with CBP's RFIs to the best of their ability.

EAPA's regulations also state at 19 C.F.R. §165.6(b) that “{a}n adverse inference used under paragraph (a) may include reliance on information derived from an allegation, a prior determination in another CBP investigation, proceeding, or action that involves evasion of AD/CVD orders, or any other available information on the administrative record.”³⁷⁷ In addition to the application of adverse inferences for all 23 Importers subject to this investigation, CBP continues to rely on evidence cited in the NOI, as summarized below for each importer, to come to its determination that based on substantial evidence, the merchandise entered by the Importers is Chinese origin and subject to the *China Orders*.³⁷⁸

Alexand

The CF-28 responses Alexand provided for the entries ending in 6190 and 3838 did not include any of the factory photographs, employee timecards, or raw material purchase documents that CBP requested. Therefore, the documents Alexand provided were insufficient to demonstrate production in Korea. Further, Alexand declared both entries as [descriptor]-origin at time of entry and identified Supplier S and Supplier F as the manufacturers of entries 6190 and 3828, respectively, even though EAPA Cons. 7856 found that neither of these producers have any mattress production.³⁷⁹

Alloech

Alloech did not respond to the CF-28 regarding entry 8285.³⁸⁰ Alloech's responses for entry numbers 6190 and 3838 demonstrates that the email address CBP issued the CF-28s to is a valid email address for Alloech and is checked periodically.³⁸¹ Therefore, Alloech's decision not to provide CF-28 responses for entry number 8285 contributes to substantial evidence of evasion.³⁸² Additionally, Alloech is a Foshan Aiyi-trademarked brand name, which indicates that it likely participated in the scheme described in the Allegations.³⁸³ During its attempted site visits, CBP officials also found that another of Alloech's suppliers, Supplier W, had no physical presence at the company's address.³⁸⁴

Anlowo

In its CF-28 response, Anlowo provided none of the production information (*i.e.*, employee timecards, raw material purchase documents, or production process description) that CBP

³⁷⁷ See 19 C.F.R. §165.6(b).

³⁷⁸ See generally NOI.

³⁷⁹ See EAPA 7856 Determination Notice at 7.

³⁸⁰ See Alloech's CF-28 Response for entry numbers 6190 and 3838.

³⁸¹ *Id.*

³⁸² See CF-28 for entry 8285.

³⁸³ See Zinus Allegations at 15.

³⁸⁴ See TW Site Visit Memo at Attachment 2 and EAPA Receipt Report.

requested.³⁸⁵ Further, CBP already determined there was substantial evidence of evasion of the *China Orders* by Anlowo by means of transshipment of Chinese mattresses through Korea in EPA Cons. 7856.³⁸⁶ Additionally, CBP systems indicate that Anlowo received mattress shipments declared as type 01 [descriptor]-origin mattresses from Supplier W, which was one of the Taiwanese entities CBP officials visited.³⁸⁷ In their site visit, the officials found no evidence of a factory at this location.³⁸⁸ Zinus also provided evidence that Anlowo is a Foshan Aiyi-owned brand name.³⁸⁹ These facts constitute substantial evidence of evasion by Anlowo.

Bentensh

Information from the Allegations and 7501s indicates that Bentensh imported mattresses declared as [descriptor]-origin and type 01 from Supplier H.³⁹⁰ The Zinus Allegation also provided a photograph of Supplier H's address showing that it is a commercial building with restaurants on the ground floor and not a factory.³⁹¹ Additionally, Bentensh did not provide any production information such as factory photographs in its CF-28 responses to substantiate its claim that the mattresses it imported were manufactured by Supplier F in Korea.³⁹² CBP also concluded that Supplier F has no mattress production capacity in EPA Cons. 7856.³⁹³ CBP systems indicate that Bentensh also received mattress shipments declared as [descriptor] from Supplier R, a Taiwanese entity CBP visited. CBP officials found no evidence of a factory or any evidence that Supplier R has any facilities or offices at Supplier R's purported address.³⁹⁴

Calimoon

Calimoon's business registration lists the same address as Zevoky, a Foshan-Aiyi brand name and importer CBP found to be evading in EPA Cons. 7856.³⁹⁵ This connects Calimoon to the Foshan Aiyi evasion scheme described in the Allegations. Additionally, Calimoon provided no response whatsoever to the CF-28s.³⁹⁶ Information from CBP data systems indicates that Calimoon declared Supplier G as the manufacturer of these entries and [location] as the country of origin.³⁹⁷

Day Day Up

Day Day Up provided no response to the CF-28s.³⁹⁸ Therefore, there is no information from the importer on the record of this investigation demonstrating any production of mattresses in Korea.

³⁸⁵ See Anlowo's CF-28 Response for Entry 4217.

³⁸⁶ See EPA 7856 Determination Notice at 14.

³⁸⁷ See TW Site Visit Memo at Attachment 2 and EPA Receipt Report.

³⁸⁸ See TW Site Visit Memo at Attachment 1.

³⁸⁹ See Zinus Allegations at 22-23 and Exhibit 1a.

³⁹⁰ See EPA Receipt Report. See also Zinus Allegation at 23, Exhibit 16a and Exhibit 16b.

³⁹¹ See Zinus Allegation at 23-24.

³⁹² See CF-28 Response for entry numbers 0967, 2511, and 1398.

³⁹³ See EPA 7856 Determination Notice at 7.

³⁹⁴ See TW Site visit Memo at Attachment 1. See also EPA Receipt Report for Bentensh.

³⁹⁵ See CVB Allegations at Exhibit 4 and EPA 7856 Determination Notice at 1.

³⁹⁶ See CF-28 for entry numbers 1469 and 5973.

³⁹⁷ *Id.*

³⁹⁸ See CF-28s for entry numbers 0518 and 5367.

Entry summary information shows that that Day Day Up received mattresses declared as [descriptor]-origin from Supplier D during the POI.³⁹⁹ Supplier D is a Korean supplier to the evading importers in EAPA Cons. 7856, that supplied the importers mattresses transshipped through Korea.⁴⁰⁰ This information ties Day Day Up directly to Foshan Aiyi's evasion network because Day Day Up received mattresses from the same supplier as certain EAPA Cons. 7856 importers involved in Foshan Aiyi's scheme.⁴⁰¹ Zinus also provided a photograph of Supplier D's Korean address, which shows that it is not a factory.⁴⁰² These facts constitute substantial evidence of evasion by Day Day Up.

Deluxe Home

Deluxe Home received shipments from Supplier D,⁴⁰³ which is a Korean supplier to [company names] in this investigation, as well as Kakaivy, Lirachy, and Ryan James Engineering, which are importers found to be evading the *China Orders* by transshipment through South Korea in EAPA Cons. 7856.⁴⁰⁴ To supply this many importers, production at Supplier D's facility would need to be enormous given the volume of mattresses these importers imported from Supplier D.⁴⁰⁵ However, Deluxe Home provided factory photographs and timecards for entry 2575 from Supplier D that show a limited number of workers employed at Supplier D's factory.⁴⁰⁶ In EAPA Cons. 7856, CBP also found that Supplier D is likely not a genuine mattress manufacturer because its address did not appear to be a factory.⁴⁰⁷ Further, the CF-28 responses Deluxe Home submitted included COOCs and employee timecards that appear fraudulent in its CF-28 responses for entry numbers 2575 and 8934 as explained above.⁴⁰⁸ Although FedEx confirmed delivery of the RFI to Deluxe Home, it never submitted an RFI response, which constitutes a failure to cooperate with the investigation to the best of its ability.⁴⁰⁹ Therefore, CBP is applying adverse inferences to make a determination as to evasion with respect to Deluxe Home and the record evidence explained above constitutes substantial evidence that Deluxe Home evaded *the Orders*.

Gemmeo

Gemmeo received mattress shipments declared as [descriptor]-origin from Supplier D,⁴¹⁰ the same supplier that supplied both Deluxe Home and some of the importers in EAPA Cons. 7856. CBP found that this supplier has no production facilities in that investigation.⁴¹¹ Gemmeo did not respond to the CF-28 requesting information about entry 5764. The information Gemmeo failed

³⁹⁹ See the CVB China Allegations at Schedule 3, A-552 and the CVB Indonesia Allegations at Schedule 2.

⁴⁰⁰ See EAPA 7856 Determination Notice at 7.

⁴⁰¹ *Id.* at 7-8.

⁴⁰² See Zinus Allegations.

⁴⁰³ See CF-28 for entry 2575, CF-28 Response for entry number 2575, and EAPA Receipt Report.

⁴⁰⁴ See Zinus Allegations at 21-23.

⁴⁰⁵ See EAPA Receipt Report and Zinus Allegations at Exhibit 16b.

⁴⁰⁶ See 2575 Supp CF28 Response at Attachment 4.

⁴⁰⁷ See EAPA 7856 Determination Notice at 7 and Zinus Allegation at 22.

⁴⁰⁸ See 2575 Supp CF28 Response, CF-28 Response for entry number 2575, and CF-28 Response for entry number 8934.

⁴⁰⁹ See Importer FedEx Delivery Memo at 2.

⁴¹⁰ See CF-28 for entry 5764 and EAPA Receipt Report.

⁴¹¹ See EAPA 7856 Determination Notice at 7.

to provide CBP in response to the CF-28 notably included factory photographs, purchase documents for raw materials, and employee timecards for production workers, which all speak to the production capacity of Supplier D.⁴¹² Available information on the record of this investigation, therefore, indicates that Supplier D has no mattress production capacity, and that Gemmeo evaded the *China Orders* by importing Chinese mattresses transshipped by this supplier.

Haiide

Haiide operates out of the same 36 Main Street, Flushing, NY address as Wuleitex⁴¹³ and Kelanch, Inc., which is one of the importers CBP found to be evading the *China Orders* in EAPA Cons. 7856.⁴¹⁴ According to the CVB Allegations, POTCTZ is also registered at this address.⁴¹⁵ The Zinus Allegations indicate that POTCTZ is a trademark owned by Foshan Aiyi,⁴¹⁶ and Haiide is also a Foshan Aiyi trademark name.⁴¹⁷ This connects Haiide with the alleged Foshan Aiyi evasion scheme. Additionally, Haiide did not provide any of the production information that CBP requested in its CF-28 response.⁴¹⁸ Haiide has also received multiple shipments, which according to the BOLs, contained “mattresses,” but according to Haiide’s customs entries, contained “[items]” not subject to AD/CVD orders on mattresses.⁴¹⁹ In sum, this evidence indicates that Haiide likely evaded the *Orders* by misclassifying its mattresses.⁴²⁰

Hondex

Zinus provided information in its Allegations showing that Hondex received mattresses from Supplier F, whose Korean address is an office building and not a factory.⁴²¹ Hondex’s 7501s confirm that it imported [descriptor] mattresses from Supplier F, which Hondex declared as not subject to AD/CVD duties during the POI.⁴²² CBP also concluded that Supplier F does not have any mattress production capacity in EAPA Cons. 7856.⁴²³ Hondex did not provide any CF-28 response, which also indicates that it may have entered covered merchandise through evasion.⁴²⁴ These facts constitute substantial evidence of evasion, especially with the application of adverse inferences to Hondex due to its non-response to the RFI CBP sent.⁴²⁵

Incoroy

⁴¹² See CF-28 for entry 5764.

⁴¹³ See CVB Allegations at 37.

⁴¹⁴ See EAPA 7856 Determination Notice at 1.

⁴¹⁵ See CVB Allegations at 37.

⁴¹⁶ See Zinus Allegations at Exhibit 1a.

⁴¹⁷ See Zinus Allegations at 6 and Exhibit 1a.

⁴¹⁸ See Haiide CF-28 Response for entry 0562.

⁴¹⁹ See Haiide Shipment Memo.

⁴²⁰ See Haiide Shipment Memo at Attachment 1.

⁴²¹ See Zinus Allegations at 21-23.

⁴²² See EAPA Receipt Report and CF-28 for entry 2596.

⁴²³ See EAPA 7856 Determination Notice at 7.

⁴²⁴ See CF-28 for entry 2596.

⁴²⁵ See the Importer RFIs and Importer FedEx Delivery Memo.

Zinus provides screenshots from Google Maps showing that Incoroy's address appears to be a restaurant.⁴²⁶ Zinus also shows that Incoroy is registered at an address next door to Vovoyace in a shopping plaza, with the names of small shops and restaurants on the front of the buildings, without Vovoyace's or Incoroy's name anywhere.⁴²⁷ Zinus shows that Incoroy received mattress shipments from Supplier F,⁴²⁸ and that Supplier F's address is a 4-story commercial building with convenience stores on the ground floor and not a factory.⁴²⁹ CBP found that Supplier F is not a legitimate mattress manufacturer in EAPA Cons. 7856.⁴³⁰ Since Incoroy did not respond to the CF-28, the company provided no production records to contradict Zinus' evidence that Incoroy's supplier has no mattress manufacturing capability in Korea.⁴³¹ These facts constitute substantial evidence of evasion, especially with the application of adverse inferences to Incoroy due to its non-response to the RFI CBP sent.⁴³²

Inland Empire

Zinus' Allegations provided trade data showing that Inland Empire received mattress shipments from Supplier Z,⁴³³ and included Google Earth screenshots showing that this supplier's address is an office and not a factory.⁴³⁴ Inland Empire's entry summary information also confirms that it imported mattresses declared as type 01, listed as [descriptor]-origin from Supplier Z.⁴³⁵ Inland Empire did not respond to the CF-28, and therefore, provided no information refuting Zinus' assertion that its supplier has no mattress manufacturing facilities in Korea.⁴³⁶ Because Inland Empire also failed to respond to the RFI CBP sent, it failed to cooperate to the best of its ability with this investigation.⁴³⁷ Therefore, based on adverse facts available, CBP has determined that Inland Empire imported covered merchandise into the customs territory of the United States through evasion.

Lincody

CVB provided trade data showing that Lincody received mattress shipments from Foshan Aiyi's Indonesian affiliate, which directly connects Lincody to the evasion scheme in EAPA Cons. 7856 and described in the Allegations.⁴³⁸ CVB also provided printouts from an Indonesian news site showing that due to a fire at Aiyi Indonesia in February 2023, it likely did not have any mattress production until the facility was rebuilt.⁴³⁹ However, CVB's BOL data shows that Lincody received shipments of mattresses from Aiyi Indonesia less than [time period] after the fire.⁴⁴⁰

⁴²⁶ See Zinus Allegations at 9 and Exhibit 11b.

⁴²⁷ *Id.* at 10-11 and Exhibit 14d.

⁴²⁸ See Zinus Allegations at 21-23.

⁴²⁹ *Id.* at 25.

⁴³⁰ See EAPA 7856 Determination Notice at 7.

⁴³¹ See CF-28 for entry number 9682.

⁴³² See the Importer RFIs and Importer FedEx Delivery Memo.

⁴³³ See Zinus Allegations at 21-23.

⁴³⁴ *Id.* at 25.

⁴³⁵ See EAPA Receipt Report.

⁴³⁶ See CF-28 for entry number 6170.

⁴³⁷ See the Importer RFIs and Importer FedEx Delivery Memo.

⁴³⁸ See the CVB China Allegations at Schedule 3, A-552 and the CVB Indonesia Allegations at Schedule 2.

⁴³⁹ See Allegations 8047 and 8049 at Exhibit 9.

⁴⁴⁰ *Id.* at Schedule 3.

Since Lincody provided none of the production information that CBP requested in its CF-28 response, Lincody's CF-28 response does not contradict CVB's Allegation that this supplier did not have mattress production capabilities at the time Lincody received these shipments.⁴⁴¹ Furthermore, as noted above, CBP officials recently visited the current location of Aiyyi Indonesia and were told by company officials that the company operating under that name has never produced mattresses at its current location. CBP placed photographs on the record showing that [description] at this location, as reflected in the photographs.⁴⁴² Therefore, it does not appear that Aiyyi Indonesia rebuilt its factory after the fire and did not produce the mattresses Lincody imported during the POI at its former location either. This constitutes substantial evidence of evasion by Lincody. Furthermore, FedEx confirmed delivery of the RFI CBP sent to Lincody, so Lincody's failure to respond constitutes a failure to cooperate and comply with this investigation to the best of its ability.⁴⁴³ CBP is therefore, applying adverse inferences to make a determination as to evasion with respect to Lincody and determines that Lincody evaded the *China Orders*.

Lirachy

The documents Lirachy provided in its CF-28 response indicate that the merchandise in entry 6925 was [descriptor]-origin [items] supplied by Supplier D,⁴⁴⁴ which is a supplier found in EAPA Cons. 7856 to have no production capacity in Korea.⁴⁴⁵ Lirachy provided none of the production documents such as manufacturer timecards and raw materials purchase documents that CBP requested, even after CBP provided Lirachy a second opportunity to provide this information.⁴⁴⁶ Therefore, CBP has no information about the facilities, personnel, or production abilities of the supplier to contradict the analysis in EAPA Cons. 7856 that Supplier D has no mattress production in Korea.

Newland

CVB provided trade data showing that Newland received [descriptor and item] shipments from Supplier 1,⁴⁴⁷ and that Supplier 1's factory is likely too small to produce the volume of mattress it has supplied Newland and other U.S. consignees in the past year.⁴⁴⁸ CVB's trade data also ties Newland to the Foshan Aiyyi evasion scheme because Newland appears on the same BOLs as Zozonid.⁴⁴⁹ The documents Newland provided in its CF-28 response also show that it declared an entry of [descriptor]-origin mattresses as type 01, not subject to AD,⁴⁵⁰ even though

⁴⁴¹ See Lincody's CF-28 Response for entry 8513.

⁴⁴² See Indonesia Site Visit Memo at Attachment 1.

⁴⁴³ See Importer FedEx Delivery Memo.

⁴⁴⁴ See Lirachy's CF-28 Response for entry 6925.

⁴⁴⁵ See EAPA 7856 Determination Notice at 4 and 7.

⁴⁴⁶ See Lirachy's CF-28 Response for entry 6925. See also CBP's Email, "CBP request for information for entries [#]4217, through [#]6925," dated September 4, 2024. CBP sent this email to Anlowo, Deluxe Home, and Lirachy and requested missing information in entry numbers 4217, 2289, 4879, 2575, 8934, and 6925.

⁴⁴⁷ See CVB China Allegations at Schedule 3.

⁴⁴⁸ See Newland Version of Allegation Supplement at 5 and Exhibit C.

⁴⁴⁹ See the CVB China Allegations at Schedule 3, A-552 and the CVB Indonesia Allegations at Schedule 2. See also EAPA 7856 Determination Notice.

⁴⁵⁰ See Newland's CF-28 Response for entry 6447.

mattresses from [location] are subject to AD duties.⁴⁵¹ Therefore, Newland's CF-28 response shows that Newland evaded an order on mattresses by failing to pay AD/CVD duties despite declaring its mattresses as [descriptor]. This also supports the inference that Newland evaded the *Orders* relevant in this investigation because Newland's false declaration of [location] as the country of origin for some of its entries calls into question the reliability of other entry documentation submitted by this Importer. At the very least, Newland's false declaration of [location] as the country of origin establishes that it was willing to use false statements to evade AD/CVD duties.

Since Newland's CF-28 response provided none of the requested production information (*i.e.*, factory photographs, employee timecards, raw material purchase documents, *etc.*), this response does not support the purported [descriptor] origin of these mattresses.⁴⁵² Additionally, Newland provided no response to the CF-28s requesting information about entry numbers 1482, 5145, and 6978.⁴⁵³

Newland also identified Supplier 1 as the source of its Indonesian mattresses, although Supplier 1, stated in its RFI response and SRFI response that it has never sold or shipped any mattresses to Newland.⁴⁵⁴ Supplier 1 also provided a list of all U.S. customers and recipients of U.S.-bound mattress shipments that did not include Newland, any other Importer named in this investigation, or any other entity with any known business relationship to Newland.⁴⁵⁵ Therefore, even if Newland purchased its mattresses from a third-party middleman, there is no evidence on the record of this investigation that Supplier 1 produced any of the mattresses for the entries for which Newland identified Supplier 1 as the manufacturer. This indicates that Newland falsely declared Supplier 1 as the manufacturer. Because Newland failed to cooperate to the best of its ability by not responding to the RFI CBP sent,⁴⁵⁶ CBP is applying adverse inferences to Newland and the record evidence described above constitutes substantial evidence of evasion by Newland.

Outlier

CVB's Allegations provided trade data showing that Outlier received mattresses from Supplier 3.⁴⁵⁷ As explained above, supplier-specific trade data shows that Supplier 3 received [items] from manufacturers in [locations and description].⁴⁵⁸ This indicates both that Supplier 3 has no mattress manufacturing capabilities in [location] and that the mattresses it exported to the United States were likely [descriptor] rather than [descriptor].⁴⁵⁹ Outlier's CF-28 response confirmed

⁴⁵¹ See *Mattresses from Cambodia, Indonesia, Malaysia, Serbia, Thailand, the Republic of Turkey, and the Socialist Republic of Vietnam: Antidumping Duty Orders and Amended Final Affirmative Antidumping Determination for Cambodia*, 86 Fed. Reg. 26460 (U.S. Department of Commerce, May 14, 2021).

⁴⁵² See Newland's CF-28 Response for entry 6447.

⁴⁵³ See CF-28s for entry numbers 1482 and 6978.

⁴⁵⁴ See Supplier 1 SRFI Response at 4.

⁴⁵⁵ *Id.* at Attachment S-5.

⁴⁵⁶ See Importer RFIs and Importer FedEx Delivery Memo.

⁴⁵⁷ See the CVB China Allegations at Schedule 3, and the CVB Indonesia Allegations at Schedule 2.

⁴⁵⁸ See Supplier Trade Data Memo.

⁴⁵⁹ See Supplier Trade Data Memo at Attachment 1 and Attachment 2.

that it received mattresses from Supplier 3 in entry number 0605.⁴⁶⁰ Further, Outlier did not provide manufacturer timecards, and the manufacturer raw material purchase documents Outlier provided do not match any of the raw materials in Outlier's production flow chart.⁴⁶¹ Therefore, the information in Outlier's CF-28 response does not support the declared [descriptor] origin of its mattresses. Instead, the trade data on the record indicates that the mattresses Outlier imported in this entry are Chinese.⁴⁶² Because Outlier failed to cooperate to the best of its ability by not resubmitting an RFI response that answered all the questions CBP asked, in spite of multiple opportunities to do so, CBP is applying adverse inferences to Outlier.⁴⁶³ Based on adverse inferences, record information constitutes substantial evidence that Outlier evaded *the Orders*.

Splendid Life

CVB's Allegations show that Splendid Life received mattresses from Foshan Aiyi's Vietnamese affiliate, which connects Splendid Life to the Foshan Aiyi evasion network.⁴⁶⁴ As explained above, Zinus' Allegations also show that Splendid Life received mattresses from Supplier Z in Korea, and that based on photographs from Google, this supplier's address is not a mattress factory.⁴⁶⁵ Splendid Life operates out of the same address as Wakodo, an importer CBP determined evaded the *China Orders* by transshipment through Korea in EAPA Cons. 7856.⁴⁶⁶ Splendid Life did not respond to CBP's CF-28, but Splendid Life declared the merchandise in entry 8193 as [descriptor] mattresses not subject to AD/CVD orders.⁴⁶⁷ This constitutes substantial evidence that Splendid Life entered covered merchandise into the U.S. customs territory through evasion.⁴⁶⁸

Startown

The BOL trade data in CVB's Allegations show that Startown received mattresses from [company name],⁴⁶⁹ while information from the Zinus Allegations shows that [company name] is a Foshan Aiyi brand name.⁴⁷⁰ This connects Startown to Foshan Aiyi's network of evasion. CVB's trade data and CBP data also show that Startown received mattress shipments from Supplier 3.⁴⁷¹ Trade data placed on the record by CBP indicates that Supplier 3 transships [descriptor] mattress to U.S. importers through [location], as explained above.⁴⁷² CBP officials also visited the Taiwanese address of two of Startown's other suppliers, Supplier Y⁴⁷³ and Supplier

⁴⁶⁰ See Outlier CF-28 Response for entry 0605.

⁴⁶¹ See Outlier CF-28 Response for entry 0605 and CF-28 for entry 0605.

⁴⁶² *Id.*

⁴⁶³ See CBP's Email, "Rejection of the RFI response of Outlier Inc. that was submitted December 12, 2024," dated December 20, 2024.

⁴⁶⁴ See the CVB Allegations at Exhibit 5.

⁴⁶⁵ See Zinus Allegations at 25.

⁴⁶⁶ See EAPA 7856 Determination Notice at 1 and 7. See also the CVB Allegations at Exhibit 4.

⁴⁶⁷ See EAPA Receipt Report.

⁴⁶⁸ See CF-28 for entries 8193 and 4648.

⁴⁶⁹ See the CVB Allegations at Exhibit 5.

⁴⁷⁰ See Zinus Allegations at Exhibit 1a.

⁴⁷¹ See CVB China Allegations at Schedule 3 and CF-28 for entry number 9969.

⁴⁷² See Supplier Trade Data Memo at Attachment 1 and Attachment 2.

⁴⁷³ See Taiwan Site Visit Memo at Attachment 3 and EAPA Receipt Report.

W.⁴⁷⁴ CBP officials found that there was no evidence of a factory, or any office with either Supplier Y's or Supplier W's name on it at these locations.⁴⁷⁵ Since Startown did not provide any production documents in its responses to the CF-28s, Startown's responses do not support its claim that the mattresses in entries 9969 and 8952 were Taiwanese-origin, as claimed in Startown's 7501s.⁴⁷⁶ Startown, by not responding to the RFI CBP sent, failed to cooperate to the best of its ability.⁴⁷⁷ CBP is therefore applying adverse inferences to make its determination as to evasion with respect to Startown. The record evidence described above therefore constitutes substantial evidence that Startown evaded the *China Orders*.

Sunshine Intl

Information from CBP systems indicates that Sunshine Intl declared the merchandise in entry 3156 as [descriptor and items] not covered by the *Orders* but produced by Supplier 5.⁴⁷⁸ Although [items] are not subject to AD/CVD duties,⁴⁷⁹ an examination of merchandise in entry number 8698 reveals that Supplier 5 manufactures [material] mattresses which are covered by the *Orders*.⁴⁸⁰ This contributes to substantial evidence that Sunshine Intl misclassified the merchandise in this entry as [items] when the merchandise was mattresses. Since Sunshine Intl provided none of the requested information about this entry, there is no evidence on the record to contradict this evidence.

Vovoyace

Information from Vovoyace's CF-28 response shows that it imported mattresses declared as [descriptor]-origin and not subject to AD/CVD duties from Supplier F.⁴⁸¹ CBP already determined in EAPA Cons. 7856 that Supplier F transshipped Chinese mattresses through Korea before supplying them to the importers. In EAPA Cons. 7856,⁴⁸² CBP also found that this supplier had no mattress production capacity in Korea.⁴⁸³ Vovoyace's failure to provide any production documents from its supplier means there is no evidence to contradict this information on the record from EAPA Cons. 7856.⁴⁸⁴ Vovoyace also failed to respond to the RFI CBP sent,⁴⁸⁵ and therefore, failed to cooperate to the best of its ability. Accordingly, CBP is applying adverse inferences to make a determination as to evasion with respect to Vovoyace. With the application of adverse inferences, the record information described above constitutes substantial evidence of evasion by Vovoyace.

Weekaly

⁴⁷⁴ See Taiwan Site Visit Memo at Attachment 2 and EAPA Receipt Report.

⁴⁷⁵ See Taiwan Site Memo at Attachment 2-3.

⁴⁷⁶ See Startown's CF-28 Responses for entries 9969 and 8952 and EAPA Receipt Report.

⁴⁷⁷ See the Importer RFIs and Importer FedEx Delivery Memo.

⁴⁷⁸ See CF-28 for entry numbers 3156 and 7046 and EAPA Receipt Report.

⁴⁷⁹ See CF-28 for entry 3156.

⁴⁸⁰ See Cargo Exam Memo at Attachment 4.

⁴⁸¹ See Vovoyace's CF-28 Response for entry 1292. See also CF-28 for entry 1292 and EAPA Receipt Report.

⁴⁸² See EAPA 7856 Determination Notice at 7.

⁴⁸³ *Id.*

⁴⁸⁴ See Vovoyace's CF-28 Response for entry 1292.

⁴⁸⁵ See the Importer RFIs and Importer FedEx Delivery Memo.

The response Weekaly provided to the CF-28 for entry number 4193 did not provide any information about the production of the mattresses in this entry (*e.g.*, manufacturer timecards, production photographs, *etc.*).⁴⁸⁶ Further, the documents Weekaly provided in its CF-28 response confirmed that Weekaly purchased the mattresses in this entry from Supplier S,⁴⁸⁷ a supplier to five Foshan-Aiyi brand name companies in EAPA Cons. 7856.⁴⁸⁸ This ties Supplier S and Weekaly to the Foshan Aiyi evasion scheme. Zinus also conducted a site visit to Supplier S's address in Korea and found that it was an office building that had no manufacturing operations.⁴⁸⁹

Weekaly did not respond to the CF-28s requesting information about entry numbers 0462 and 9173.⁴⁹⁰ According to CBP systems, Weekaly declared entry 0462 as an entry of [descriptor] mattresses not subject to AD/CVD duties. However, Weekaly declared the manufacturer as [company name],⁴⁹¹ which is a company that admitted transshipping Chinese mattresses through Korea on the record of EAPA Cons. 7856.⁴⁹² Weekaly declared entry 9173 as [descriptor]-origin mattresses not subject to AD/CVD duties.⁴⁹³ However, CBP determined that Weekaly evaded the *China Orders* by transshipment through Korea in EAPA Cons. 7856.⁴⁹⁴ Since Weekaly provided none of the information that CBP requested for entry 9173, there is no evidence on the record to support the declared [descriptor] origin of this entry.⁴⁹⁵ This fact, combined with Weekaly's history of evasion through Korea,⁴⁹⁶ constitutes substantial evidence that Weekaly also evaded the *Orders* by transshipment through [location].

Wuleitex

Trade data from the CVB Allegations indicate that Wuleitex received mattresses from [descriptor] supplier [company name] (Supplier 6).⁴⁹⁷ These data also show that Wuleitex received this shipment at the same Flushing, NY address as Kelanch Inc., a Foshan Aiyi-affiliated importer found to be evading the *China Orders* by transshipment through Korea in EAPA Cons. 7856.⁴⁹⁸ According to information in the Zinus Allegations, Wuleitex is also a registered trademark owned by Foshan Aiyi.⁴⁹⁹ This indicates that Wuleitex is likely an affiliate of Foshan Aiyi and is, therefore, connected to its evasion scheme.

Although Wuleitex claimed on its 7501 that the merchandise in entry number 6423 was [items] produced in [location] by Supplier B, one of the manufacturer POs

⁴⁸⁶ See Weekaly's CF-28 Response for entry 4193.

⁴⁸⁷ *Id.*

⁴⁸⁸ See EAPA 7856 Determination Notice at 7 and Table 2 (page 10).

⁴⁸⁹ *Id.* at 17.

⁴⁹⁰ See CF-28s for entries 0462 and 9173.

⁴⁹¹ See CF-28 for entry numbers 0462 and 9173. See also EAPA Receipt Report.

⁴⁹² See EAPA 7856 Determination as to Evasion.

⁴⁹³ See EAPA Receipt Report and CF-28 for entry 9173.

⁴⁹⁴ *Id.*

⁴⁹⁵ See CF-28 for entry 9173 and EAPA Receipt Report.

⁴⁹⁶ See EAPA 7856 Determination Notice.

⁴⁹⁷ See CVB China Allegations at Schedule 3.

⁴⁹⁸ See CVB China Allegations at Schedule 3 and 7856 Determination Notice at 1.

⁴⁹⁹ See Zinus Allegations at Exhibit 1a.

Wuleitex submitted for this entry had Supplier C on it as the issuing party.⁵⁰⁰ The exterior photographs of the purported manufacturer's location appear to be a parking garage with no indication (*i.e.*, a sign on the building) that Supplier B is located at this facility or that it is a factory.⁵⁰¹ The photographs Wuleitex provided of the interior show machines for [process], but they did not show equipment for other production steps listed in the production process diagram, and they showed [#] production workers.⁵⁰²

Wuleitex did not submit a response to the CF-28s requesting information for entry 7498 which according to Wuleitex's 7501, consisted of [descriptor] type 01 [items] which are not covered by the *Orders*.⁵⁰³ However, the declared supplier of this entry is also Supplier B. Since the photographs Wuleitex provided of this supplier's location show that it appears to be a parking garage rather than a factory, there is substantial evidence that this was a false statement. Since Wuleitex did not respond to the CF-28 for this entry,⁵⁰⁴ or to the RFI CBP sent,⁵⁰⁵ CBP determines that Wuleitex evaded the *Orders* based on adverse inferences.

According to its 7501s, Wuleitex also declared the merchandise in entries 8614 as [descriptor and items] that are outside the scope of the *Orders* and made by Supplier C. Wuleitex also listed the same Flushing, NY address as Kelanch Inc. on its 7501 for this entry, which confirms that Wuleitex still used that address at time of entry.⁵⁰⁶ The photographs of Supplier C's factory only show equipment for [process], and the raw material POs Wuleitex provided show that Supplier C only purchased [items] but did not purchase the [items], which according to the production flow chart Wuleitex provided with its CF-28 response, would be needed to produce the goods in this entry.⁵⁰⁷ Wuleitex is connected to the Foshan Aiyi evasion scheme because of the address it shares with Kelanch and the fact that Wuleitex is a registered trademark of Foshan Aiyi; thus, there is substantial evidence of evasion.⁵⁰⁸ To conclude, the incompleteness of Wuleitex's CF-28s responses for entry numbers 8614⁵⁰⁹ and 6423,⁵¹⁰ combined with Wuleitex's failure to provide a response to the CF-28 for entry 7498,⁵¹¹ also constitute evidence of evasion.

Zozonid

Zozonid submitted no response to the CF-28.⁵¹² Data from the CVB Allegations and CBP systems indicate that Zozonid received shipments of [descriptor] mattresses from Supplier D,⁵¹³

⁵⁰⁰ See Wuleitex's CF-28 Response for entry number 6423.

⁵⁰¹ *Id.*

⁵⁰² *Id.*

⁵⁰³ See EAPA Receipt Report and CF-28 for entry 7498.

⁵⁰⁴ See CF-28 for entry 7498.

⁵⁰⁵ See CBP's Email and Letter to Wuleitex, "RE: EAPA Cons. Case Number 7913 Request for Information," both dated November 4, 2024.

⁵⁰⁶ See Wuleitex's CF-28 Response for entry 8614 and EAPA 7856 Determination Notice at 1.

⁵⁰⁷ See Wuleitex's CF-28 Response for entry 8614.

⁵⁰⁸ See Zinus Allegations at Exhibit 1a.

⁵⁰⁹ See Wuleitex's CF-28 Response for entry 8614.

⁵¹⁰ See Wuleitex's CF-28 Response for entry 6423.

⁵¹¹ See CF-28 for entry 7498.

⁵¹² See CF-28s for entry number 0871.

⁵¹³ See CVB China Allegations at Schedule 3, CVB Vietnam Allegations at Schedule 2, and EAPA Receipt Report.

which is the supplier to EAPA Cons. 7856 importer Kakaivy. Supplier D also supplied mattresses to Deluxe Home, Gemmeo, Lirachy, and Weekaly.⁵¹⁴ This connects Zozonid to Foshan Aiyi's evasion scheme, and CBP already concluded through its investigation in EAPA Cons. 7856 that Supplier D does not have any capacity to manufacture mattresses in Korea.⁵¹⁵ Because Zozonid did not respond to the RFI CBP sent, CBP is applying adverse inferences to Zozonid because it failed to cooperate to the best of its ability. Based on adverse inferences, the facts on the record of this investigation constitute substantial evidence of evasion by Zozonid.⁵¹⁶

Foreign Suppliers

Despite having been given multiple opportunities to respond to the RFIs, as described above,⁵¹⁷ none of the foreign suppliers the Importers identified upon entry responded to RFIs, except for Supplier 1 and Supplier 8.⁵¹⁸ Although Supplier 8 submitted an RFI response that was late, CBP accepted it and subsequently sent Supplier 8 an SRFI.⁵¹⁹ CBP rejected Supplier 8's SRFI and afforded Supplier 8 multiple opportunities to resubmit its SRFI response, but Supplier 8 never resubmitted its response.⁵²⁰ Therefore, CBP did not consider Supplier 8's SRFI response and removed the response from the administrative record of this investigation, in accordance with 19 C.F.R. § 165.4(b)(3). None of the information provided by Supplier 1 or Supplier 8 supported concluding that they produced the merchandise entered by the Importers which had identified those suppliers as manufacturers.⁵²¹

Substantial Evidence

The evidence on the administrative record, as described above, amounts to substantial evidence of evasion, as the Importers provided no clarification or rebuttal of that evidence though given multiple opportunities to participate in the investigation process.⁵²² As discussed below, CBP is

⁵¹⁴ See 7856 Determination Notice at 4, 16, CVB China Allegations at Schedule 3, CVB Vietnam Allegations at Schedule 2, and EAPA Receipt Report.

⁵¹⁵ See 7856 Determination Notice at 7, 8, and 16.

⁵¹⁶ See the Importer RFIs and Importer FedEx Delivery Memo.

⁵¹⁷ See CBP's Emails and RFIs dated November 8, 2024, and November 23, 2024, for Supplier 8, Supplier X, Supplier B, Supplier 1, Supplier Q, Supplier M, Supplier 13, Supplier 2, Supplier L, and Supplier 6. *See also* CBP's Memorandum, "Results of attempted FedEx to 10 suppliers," dated December 27, 2024, CBP's Memorandum, "Result of FedEx resend of Supp 2 RFI," dated January 3, 2025, CBP's Memorandum, "Results of attempted FedEx transmission of 22 supplier RFIs," dated November 21, 2024, and CBP's Memorandum, "Results of attempted FedEx transmission of 10 supplier RFIs," dated December 13, 2024, and CBP's Memorandum, "Results of 2nd FedEx transmission of RFI to Supplier J," dated December 2, 2024.

⁵¹⁸ See Supplier 1 RFI Response and Supplier 8 RFI Response.

⁵¹⁹ See Supplier 8 RFI Response and Supplier 8 SRFI.

⁵²⁰ See Supplier 8 SRFI, CBP's Email, "RE: EAPA Cons. 7913 – Supplier 8 Supplemental Request for Information," dated January 15, 2025, CBP's Email, "RE: EAPA Cons. 7913 – Supplier 8 Supplemental Request for Information," dated January 22, 2025, and CBP's Email, "EAPA Cons. 7913 – Rejection of Supplier 8 RFI Response," dated February 4, 2025.

⁵²¹ Although CBP arguably could apply adverse inferences to Supplier 8 and to other suppliers believed to have received their respective RFIs by email and/or FedEx delivery, there are suppliers that clearly did not receive such RFIs, given the absence of email addresses and FedEx delivery failures. However, the adverse inferences applied to the 23 Importers covers this issue, as the Importers' failure to respond to their own RFIs hindered CBP in its efforts to contact all the suppliers in question.

⁵²² See the Importer RFIs.

drawing inferences adverse to the 23 Importers from the information submitted to CBP in the Allegation and other information obtained during CBP's investigation to conclude that the imported mattress products were Chinese-origin and subject to the *China Orders*.⁵²³ In conclusion, based on the totality of the evidence on the record, CBP determines that the mattress products imported by the 23 Importers originated in China.

Under 19 U.S.C. § 1517(c)(1)(A), to reach a final determination as to evasion, CBP must “make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion.” Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material and that results in any cash deposit or other security of any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise.”⁵²⁴ As discussed in this determination and in the NOI, the record of this investigation contains evidence that mattress products subject to the *China Orders* were entered by the Importers into the United States through evasion, resulting in the avoidance of applicable AD/CVD cash deposits or other security. Based on that evidence, and the application of adverse inferences because of the Importers' failure to cooperate in the investigation, CBP concludes there is substantial evidence of evasion.

Determination as to Evasion

Based on the totality of information contained in the administrative record, as referenced in the NOI and the Importers' subsequent failure to respond to RFIs, CBP determines there is substantial evidence that the Importers evaded the *China Orders* by importing mattresses of Chinese origin into the United States and failing to declare them as covered merchandise and at that time failing to pay the required AD/CVD cash deposits on such subject merchandise covered by the *China Orders*.

Actions Taken Pursuant to the Affirmative Determination as to Evasion

In consideration of CBP's determination that substantial evidence demonstrates that the Importers entered covered merchandise into the customs territory of the United States through evasion, and pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28, CBP will suspend or continue to suspend the entries covered by this investigation, until instructed to liquidate. For those entries previously extended in accordance with Interim Measures, CBP will rate adjust and change those entries to type 03, covered by the *China Orders*, and continue suspension until instructed to liquidate these entries. CBP may also evaluate the Importers' continuous bonds in accordance with CBP's policies. None of the above actions precludes CBP or other agencies from pursuing additional enforcement actions or penalties.

⁵²³ See 19 U.S.C. § 1517(c)(3)(B) -(C); see also 19 C.F.R. § 165.6(c); see also Initiation Memo and NOI.

Furthermore, as noted above, only two of the 32 foreign suppliers to the Importers submitted responses to the RFIs issued to them by CBP, and nothing in the responses of those two suppliers supports concluding that the mattress products imported by the relevant Importers were of country of origin other than China.

⁵²⁴ See 19 C.F.R. § 165.1; see also 19 U.S.C. § 1517(a)(5)(A).

Sincerely,

A handwritten signature in blue ink, appearing to read "Victoria Cho".

Victoria Cho
Director
Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

ADDENDUM:

Supplier Names and Abbreviations

Supplier Names and Abbreviations		
	Manufacturer Name	Short Cite
[	COMPANY NAME	] Supplier 1
[	COMPANY NAME	] Supplier 2
[	COMPANY NAME	] Supplier 3
[	COMPANY NAME	] Supplier 4
[	COMPANY NAME	] Supplier 5
[	COMPANY NAME	] Supplier 6
[	COMPANY NAME	] Supplier 7
[	COMPANY NAME	] Supplier 8
[	COMPANY NAME	] Supplier 9
[	COMPANY NAME	] Supplier 10
[	COMPANY NAME	] Supplier 11
[	COMPANY NAME	] Supplier 12
[	COMPANY NAME	] Supplier 13
[	COMPANY NAME	] Supplier B
[	COMPANY NAME	] Supplier C
[	COMPANY NAME	] Supplier D
[	COMPANY NAME	] Supplier E
[	COMPANY NAME	] Supplier F
[	COMPANY NAME	] Supplier G
[	COMPANY NAME	] Supplier H
[	COMPANY NAME	] Supplier I
[	COMPANY NAME	] Supplier J
[	COMPANY NAME	] Supplier L
[	COMPANY NAME	] Supplier M
[	COMPANY NAME	] Supplier O
[	COMPANY NAME	] Supplier P
[	COMPANY NAME	] Supplier Q
[	COMPANY NAME	] Supplier R
[	COMPANY NAME	] Supplier S
[	COMPANY NAME	] Supplier U
[	COMPANY NAME	] Supplier W
[	COMPANY NAME	] Supplier X
[	COMPANY NAME	] Supplier Y
[	COMPANY NAME	] Supplier Z